



Women's Studies And Development Centre
University of Delhi



Journal of Women's & Gender Studies

Vol I(I), 2025

DU-WGS

Women's Studies & Development Centre,
University of Delhi, 2025. ©

Publisher Details:

Women's Studies & Development Centre
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SOCIO-CULTURAL ASSIMILATION OF EPIC HEROINES INTO STATELY TRENDS

An account of altering narratives: Sītā and Draupadī

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Abstract

This paper examines the evolving cultural portrayals of the epic heroines Sītā and Draupadī, arguing that modern reinterpretations often shaped by patriarchal or feminist ideologies have flattened the complexity of their original textual identities. Through a close reading of Vālmīki's Rāmāyaṇa and Vyāsa's Mahābhārata, alongside Kaliprasanna Singha's 19th-century Bengali translation and Vivek Debroy's English rendering, the article explores how Sītā's assertiveness and Draupadī's submission have been alternately erased or exaggerated. While Sītā is traditionally idealised as the silent, suffering wife, the Vālmīkian text reveals a woman marked by emotional intensity, moral clarity, and self-assertion. Draupadī, conversely, is often celebrated as a feminist icon, yet her epic representation reveals deep entrenchment in patriarchal codes, where her autonomy is repeatedly compromised. The paper calls for a more nuanced, historically sensitive reading of these characters, one that honours their narrative complexity without imposing ideological prescriptions, thereby reclaiming their full human agency within the epic imagination.

Introduction

The cultural imagination surrounding epic heroines like Draupadī and Sītā has undergone significant transformation over centuries, reflecting shifts in socio-religious values and gender politics. Modern retellings, especially in literature and popular media, often project these women as symbols of strength, rebellion, and feminist assertion. Draupadī is widely remembered as a defiant queen who challenged injustice and upheld her dignity, while Sītā is revered as the resilient, virtuous consort of Rāma. However, these portrayals contrast sharply with their original characterisations in Ved Vyāsa's *Mahābhārata* and Vālmīki's *Rāmāyaṇa*, where patriarchal expectations largely shape both women. Far from being vocal agents of resistance, caste norms, familial honour, and male authority condition their roles. The shift from textual to cultural Draupadī and Sītā demands a close examination of how gendered narratives are selectively remembered, reinterpreted, or erased over time.

In Kaliprasanna Singha's Bengali prose translation of *The Mahābhārata*, Draupadī's autonomy is repeatedly compromised. At her Svayaṃvara, it is Dhr̥ṣṭadyumna who announces that she will be Vīryaśulka and marry the archer who completes the Lakṣa-bheda trial. Though she refuses to marry Karṇa, this is not an act of personal defiance but an assertion of caste hierarchy, reinforcing Brahminical codes of honour. The pivotal moment where Kunti unknowingly commands her sons to share whatever they had brought in alms results in Draupadī being married to all five Pandavas without her consent. Later, Yudhiṣṭhira justifies this decision by telling King Drupada that the brothers have a custom of sharing any 'utkr̥ṣṭa vastu' or "excellent object", effectively reducing Draupadī to a prized possession. Her silence in the face of Arjuna's marriage to Subhadra, which she greets with humour rather than hurt, further underscores her internalisation of patriarchal norms. (Singha 253) Even the popular story of her mocking Duryodhana in the Maya-made Sabhā is misattributed; it is Bhīma, Arjuna, Nakula, and Sahadeva who laugh, not Draupadī. (Singha 349) The epic text, therefore, portrays a woman whose emotional complexity and social constraints are far removed from the fiery image projected in later cultural memory.

The whole construct of 'femininity' has been traditionally well guarded, with such constraints placed on her free movement within the multiple possible senses of her identity, be they of gallantry or subtle relenting into the patriarchal constructs. In this course of thought, sometimes even the so-called construct of 'brave feminism' is artificially induced into places and characters where it does not belong, and the superimposition paints the whole character in a colour which makes the persona embody what the construct wants her to be, rather than what she is. If feminism were all that was to do with the freedom of the suppressed gender class, then such

superimposition of feminist outspokenness on Draupadī takes away the very essence of her characterisation, and thus the freedom of her character to be what it was is sacrificed. Such a superimposed 'brave feminism' on a character that doesn't ascribe herself to it not only indirectly ties her up in how society wants to see her and not what she actually is, but also maligns the predominant essence of the epic. In the older and more politically significant epic of the contemporary period, *Rāmāyana*, the other side of the same coin of overt extremist injustice is expressed.

The subversion of Sītā has initiated an idea of womanhood characterised with silent resilience and whose desires are limited to the husband's will, and assimilating into this trope has been the traditional picture of the ideal feminine. However, in the original and the oldest reading of the epic, we find Sītā to portray a character quite contrary to such a superimposition of patriarchy. What has acted against the character of Draupadī should have acted in favour of Sītā were she not pulled down and made silent with the raging demand of silent resilience as the ideal of femininity. Instances in *Rāmāyana* show her discontent with her husband's orders, crude verbal attack on her husband's kin, and explicit expression of her desires defying the very cultural norms that were supposed to grow, setting her as an example.

Sītā's portrayal in Vālmīki's *Rāmāyana* is far more complicated than the image of the silent sufferer revered in devotional traditions. In the *Aranya-Kāṇḍa*, her demand that Lakṣmaṇa abandon her to rescue Rāma in the forest is laced with suspicion and ego. She accuses Lakṣmaṇa of harbouring illicit intentions towards her, which reveals a far less submissive Sītā than is popularly imagined – one capable of sharp words, emotional manipulation, and egoistic outbursts. Her aggressive speech to Lakṣmaṇa not only breaches the norms of sister-in-law decorum but also reflects her belief in her centrality to Rāma's life, a quality rarely acknowledged in hagiographic retellings. Thus, just as Draupadī's image has been reworked to fit feminist ideals, Sītā's depiction has also been sanitised to suit patriarchal expectations of wifely obedience and virtue. In revisiting these original texts, one uncovers a more nuanced and often uncomfortable truth – that both heroines were deeply enmeshed in, and frequently limited by, the structures of caste, gender, and dharma.

Cultural Shifts in the Understanding of Sītā: From Egoism to Idealization

The figure of Sītā in the *Rāmāyana* has, over centuries, become emblematic of an idealised feminine virtue, one grounded in notions of silent resilience, unwavering devotion to the husband, and an almost passive assimilation into patriarchal expectations. This image has been so deeply ingrained within cultural consciousness

that it often eclipses the more complex and resistant dimensions of her character found in the earliest versions of the epic. The dominant cultural trope of womanhood that Sītā is made to represent is self-sacrificing, soft-spoken, and docile, in fact, a superimposition shaped by later socio-political and religious ideologies rather than the original textual reality.

In contrast to this imposed image, a closer reading of Vālmīki's *Rāmāyaṇa*, often considered the oldest extant version, reveals a Sītā who is far from passive. Her agency, emotional expressiveness, and moral assertiveness are evident throughout the text. She does not hesitate to voice her dissent when she feels wronged, nor does she shy away from critiquing decisions made by her husband, Rāma. Notably, when Rāma insists she remain in Ayodhyā during his exile, Sītā passionately rebukes him, asserting her right and will to accompany him. Her words are not of meek persuasion but of reasoned resistance, rooted in both love and a strong sense of dharma. Later, in the forest, Sītā openly expresses fear and frustration, and even accuses Lakṣmaṇa of harbouring ulterior motives when he hesitates to leave her alone for a moment, which illustrates her human vulnerability as well as her boldness in speech.

Even more telling is her powerful rejection of Rāma's authority upon her return from Lanka. When Rāma questions her chastity, Sītā does not meekly accept his judgment. Instead, she publicly challenges the basis of his doubt, ultimately choosing the trial by fire not as submission, but as a defiant act to prove her truth on her own terms. Her return to the earth in the *Uttara-Kāṇḍa* is similarly resolute: she refuses Rāma's request for reconciliation and instead appeals to Mother Earth, asserting her integrity and agency in a final, irreversible decision. These moments reveal a Sītā who is morally uncompromising and emotionally articulate, a woman who negotiates her space within and sometimes outside of the boundaries prescribed to her.

Ironically, the very qualities that have been historically criticised in Draupadī's outspokenness, passionate speech, and refusal to accept injustice are present in Sītā as well, albeit in a different tenor. Yet where Draupadī's assertiveness has often been framed as problematic, Sītā's moments of resistance have been domesticated or erased to fit the mould of idealised femininity. Had Sītā's defiance been acknowledged and upheld, it might have served to challenge rather than consolidate the patriarchal narrative. Instead, her character has been tamed, rendered palatable through a lens that elevates silence over speech and submission over autonomy.

The figure of Sītā has undergone significant transformations across the centuries in Indian cultural imagination. While the Tulsidasian rendering of Sītā in the *Rāmacharitmanas* elevates her as the epitome of gentle obedience and spiritual purity, the earlier Vālmīki *Rāmāyaṇa* presents a far more assertive, emotionally complex, and occasionally egoistic woman. This difference reflects the broader cultural shift from

classical to Bhakti aesthetics, where the ideal of womanhood transitions from moral agency and emotional realism to submissive devotion and symbolic purity. Notably, in Vālmīki's epic, especially in Debroy's recent English translation, Sītā's voice often challenges the idealized portrayals commonly associated with her character in popular retellings.

One of the clearest departures from the Tulsidasian ideal occurs in Sītā's verbal attack on Lakṣmaṇa in the *Aranya-Kāṇḍa*, when Rāma is lured away by the golden deer and she suspects foul play. Her accusation is not simply emotional; it borders on cruel egotism and is laced with implications of Lakṣmaṇa's lust. In Vivek Debroy's translation, Sītā declares: "O ignoble one! O one who lacks compassion! You have no love or affection for your brother. That is the reason you are unconcerned and do not go to the side of that one with the dark complexion. Perhaps this is what you had desired for a long time. That is the reason you have brought me to the forest. O Soumitri! There is no doubt that I will give up my life in your presence." (2:94) This outburst reflects not only her deep anxiety for Rāma's well-being but also an unrestrained egotism that flies in the face of the stereotypical image of a self-sacrificing, rational Sītā. Her words are emotionally manipulative and potentially insulting to familial dharma.

In contrast, *Rāmacharitmanas* largely omits this episode's emotional turbulence or reduces it to devotional fervour. Tulsidas reframes Sītā as a paragon of virtue whose sufferings are not signs of inner conflict or ego but tests of her divine chastity. Her interactions with Lakṣmaṇa, for instance, are carefully sanitized to align with Vaishnava ideals of ideal womanhood, as we can see in the translation by Madhava Śaraṇa: "When Sītā heard the cry of distress, she was seized with excessive fear and said to Lakṣmaṇa, 'Go quickly, your Brother is in great peril'. Lakṣmaṇa answered with a smile, 'Listen, mother! By the very play of Rāma's eyebrows the entire creation is annihilated; could He then ever dreamed of being in danger?'" But when Sītā urged him with words that cut him to the quick, Lakṣmaṇa's resolution for such was Hari's will." (705) The rebuke of Lakṣmaṇa by Sītā has been skipped over, the dialogues of Sītā where she was to accuse Lakṣmaṇa of his reluctance to go and check on his brother didn't make a part of his reiteration of the original epic where chastity, silence, and deference are valued above emotional outbursts or moral critique. By suppressing Sītā's psychological realism, the Bhakti tradition converts her into a theological symbol rather than a human character with flaws, desires, and insecurities. Later on in the same chapter, we find her accusing herself of her abduction and hence being extremely timid towards her self-identity, "Ah! Lord of Raghus, peerless champion of the world, reliever of distress and delighter of the suppliant, ah! The sun that gladdens the lotus-like race of Raghu, for what of mine you forgot showing mercy?

"Ah! Lakṣmaṇa, the fault is none of yours; I have reaped the fruit of the temper

I showed.” Manifold were the lamentations that Videha’s daughter uttered. “Though boundless his mercy, my loving lord is far away. Who will apprise the lord of my calamity?” (Saran 706) In the original epic, such self-abuse of Sītā would be absent.

Furthermore, in Vālmīki’s narrative, Sītā’s identity as a lover often supersedes her role as a dutiful wife. Her insistence on following Rāma to the forest is born not merely from dharma but from a romantic, almost possessive impulse: she fears being separated from her beloved more than she dreads the wilderness. Her emotional life is central to her character, unlike in the *Rāmacharitamānas*, where Sītā’s devotion is devotional and static. In Vālmīki, her grief in Aśoka Vātika, her anger toward Rāma after the war and her rejection of being treated as a political object reveal a personality that challenges patriarchal boundaries and refuses to remain silent or ornamental.

One might argue that Vālmīki’s Sītā, for all her flaws and emotional excesses, is more radically *human*. She argues, protests, doubts, and loves with intensity. Her egoism is evident in her rebuke of Lakṣmaṇa, her demand for the golden deer, and her final refusal to return to Rāma in the *Uttara-Kāṇḍa* suggests not a fall from womanhood but a richer, layered depiction of feminine interiority. In this sense, Vālmīki’s Sītā is culturally subversive. She refuses to passively embody virtues prescribed for women in Dharmashastric texts and instead becomes a character in conflict with the very ideals later Bhakti literature enshrines.

The later theological gesture in Tulsidas’s text of replacing Sītā with a *Māyā Sītā* during the abduction is perhaps the clearest sign of this shift. It is not just an attempt to protect her chastity; it is a refusal to let her suffer, question, or fall. While well-intentioned in devotional terms, this move erases the moral and emotional agency that defined Sītā in the original epic. The Bhakti-era Sītā becomes a mute goddess, while Vālmīki’s Sītā remains a fallible woman and thus, arguably, more powerful. She challenges not only Rāvaṇa but also Rāma, Lakṣmaṇa, and the entire framework of ideal womanhood that would later silence her.

One of the strongest examples of Sītā’s self-assertion comes from *Araṇya-Kāṇḍa*, where, upon being confronted by Rāvaṇa, she declares: “After abducting Shachi, Indra’s wife, it is possible to remain alive. However, it is impossible to remain alive after abducting me.” (Devroy, vol. 2, 103) This claim positions her not only as Rāma’s beloved but as a woman whose divine power exceeds even that of Shachi, the queen of the gods. This statement is not rooted in humility or self-effacing piety; it is a direct challenge to Rāvaṇa’s authority and a reflection of Sītā’s self-perceived worth and inviolability. In modern political uses of Sītā, such moments are often ignored because they do not conform to the image of the suffering, silent wife. Instead of allowing Sītā to speak from a place of self-worth, contemporary retellings neutralize her voice to fit the ideal of domestic feminine restraint. This statement is not born of

arrogance in a conventional sense; it is a proclamation of moral and metaphysical authority. She is not merely invoking her husband's power as a deterrent; she is asserting her own sacrosanct status, which renders any violation of her person not just immoral, but existentially fatal for the violator. This idea that her body and being are inherently unassailable is far removed from the latter ideal of the passive, patient sufferer. In fact, it constructs Sītā as a figure of divine threat, more akin to a goddess of wrath or *shakti* than a meek housewife. Her warning to Rāvaṇa is a verbal weapon, wielded with full awareness of her own moral potency.

In *Sundara-Kāṇḍa* of Vālmīki's *Rāmāyaṇa*, Sītā's interactions with Rāvaṇa in the Aśoka Vāṭikā are filled not with fear or passivity, but with vehement denunciation and moral defiance. When Rāvaṇa visits her and tries to entice her with luxuries and threats, Sītā does not cower; she confronts him with biting scorn. She refuses his offers categorically and warns him that his actions will lead to his destruction, not through Rāma's strength alone, but as a cosmic consequence of having dared to violate her dignity. In Debroy's translation, Sītā tells Rāvaṇa, "You are a low and evil-minded person... My husband is like a lion, and you are like a jackal." (Devroy, vol. 4, 36) Her language is deliberately degrading, reversing the power dynamic and establishing that she sees herself as a figure of such moral and personal stature that even the most powerful *rakṣasa* is unworthy of her presence. This encounter directly undermines the Bhakti-era vision of Sītā as the ever-suffering, speechless ideal wife. Here, she speaks back, with pride, judgment, and unmistakable contempt.

Even in her sorrow and isolation, Sītā's self-regard never falters, a trait almost entirely absent in later devotional traditions. Alone in the Aśoka Vāṭikā, surrounded by Rāvaṇa's *rākṣasī* guards, she laments not with submission but with rhetorical self-affirmation. In one such moment, Sītā exclaims, "Do I not possess any qualities? Why am I suffering misfortune in this way? I am the beautiful Sītā who deserves the best." (Devroy, vol. 4, 28) This is not a cry of helplessness; it is a declaration of bewildered dignity. She refuses to accept that her suffering is warranted or just and instead appeals to her own *guṇa*, her beauty, virtue, and worth as reasons why she should not be enduring this torment. This bold self-assessment reveals an ego and a confidence in her individual value that is striking in the context of ancient epic literature. While later portrayals transform Sītā into a paragon of meek endurance, Vālmīki's Sītā owns her excellence and finds it incomprehensible that someone like her should suffer, thus reasserting her human, emotional, and moral complexity.

Later, when Hanuman first meets her in Aśoka Vāṭikā, Sītā refuses to ride on his back and return to Rāma immediately, not because of fear or weakness, but because she wishes her rescue to come through Rāma's own strength, preserving both her dignity and Rāma's *kṣatriya dharma*. She says, "How can I touch another male's body, even

if it is for rescue?”. (Devroy, vol. 4, 20) Here too, Sītā is acutely aware of the sanctity of her own body and its symbolic significance. Her body is not an object to be rescued at any cost; it is a site of *dharma*, of both feminine chastity and spiritual resolve. She reasserts her autonomy by choosing the manner of her liberation.

The portrayal of Sītā as a purely self-effacing wife is insufficient and fundamentally misleading. Even during the harrowing *Agni Parikṣa* (fire ordeal), which Rāma demands to prove her purity, Sītā maintains her agency, forcefully reminding Rāma of his royal duty and his unduly harsh attitude towards her. As Mukti Lakhi Mangharam in her article explains, when Rāma insists that Sītā bathe before appearing before him, he exposes her to the “unenlightened, barbaric codes of ‘mere mortals’ and humiliates her by subjecting her to the gaze of others. She writes, “Rāma’s ‘fall’ means that Sītā must remind Rāma of his own divinity as well as hers.”

She who ‘revered her husband as a god’ asks Rāma a forceful question that reprimands him for acting in a way that is not consistent with their divinity: “Why do you speak to me, O my heroic husband, As any ordinary man to any ordinary woman?” [247]. In another mournful rejoinder to Rāma, she also asserts her own godly status: “I am called Janaki, Daughter of Janaka, But I was born of the earth, I am Sītā the Furrow. Did you ever consider My exalted birth Before passing judgment?” [249]. In reminding Rāma of her own as well as his divinity even as he proudly asserts that he is a ‘mere mortal,’ Sītā asks that Rāma behave dharmically towards her. (Manghraam 91) The notion of Sītā as a self-abnegating, virtuous wife is not an intrinsic feature of her original character but rather a later ideological imposition.

Such moments collectively portray Sītā not as a passive sufferer, but as a woman who commands moral authority and defines the terms of her own honour. Her sense of inviolability is so powerful that it reshapes the narrative space around her. Rāvaṇa’s eventual death is foreshadowed not by Rāma’s heroism alone, but by Sītā’s curse-like assertion that no man who touches her without her consent can survive. In this light, her character in Vālmīki’s version, especially in Debroy’s careful and literal rendering, becomes a potent model of emotional and moral agency, far more complex than the devotional icon she becomes in Bhakti traditions and modern political rhetoric. Rather than a figure of sacrifice, she is a figure of dignity and judgment, a woman who knows her worth and is unafraid to assert it, even in the face of mortal danger.

In truth, Sītā’s portrayal in the *Rāmāyaṇa* offers a more layered and humanised model of womanhood, one that embodies love and loyalty, yes, but also reason, resistance, and dignity. The cultural insistence on reading her only as the paragon of silent endurance is a disservice not only to her character but also to the generations of women who have been told to emulate her in ways that suppress their voices. Reclaiming Sītā’s full character, her discontent, her decisions, and her defiance is

essential to understanding the radical potential embedded in her story. It is only through such re-readings that we can begin to unravel the deep patriarchal sedimentations that have shaped our myths, and in turn, our models of womanhood.

Draupadī: Misunderstood or Over-Understood?

The cultural construction of 'femininity' has long been protected and curated within rigid frameworks, often shaped by patriarchal anxieties and desires to control female agency. Within these constraints, characters like Draupadī in the *Mahābhārata* have borne the burden of embodying either the ideals of submissive womanhood or the symbolic extremes of resistance. Her identity, multi-layered and nuanced, is frequently flattened into singular tropes, whether of defiance or compliance. In this process, the possibilities of her complex selfhood are often restricted. Draupadī's character is not only marked by moments of assertiveness and rhetorical boldness, but also by emotional conflict, ethical struggle, and spiritual introspection. Yet, in many modern readings, particularly those seeking to reclaim her within feminist frameworks, there is a tendency to project onto her an image of a defiant feminist heroine, what might be called a superimposed 'brave feminism' that does not entirely align with the textual and contextual fabric of her character.

Such interpretations, while often well-intentioned, can risk replacing one form of prescriptive identity with another. If feminism, at its core, advocates for the autonomy and freedom of individuals, particularly those historically silenced, then it must also respect the integrity of a character's original narrative space. By forcibly attributing a singular feminist agenda to Draupadī, we may inadvertently constrain her agency rather than liberate it. In other words, the imposition of a contemporary ideological framework onto a figure from a vastly different historical and philosophical context may result in a misreading that speaks more to the desires of the present than to the substance of the past.

This is not to deny the presence of subversive energy in Draupadī's actions or words. Indeed, her challenge to the Kuru elders in the sabhā, her refusal to accept injustice silently, and her insistence on the dignity of her being are deeply resonant moments of ethical and emotional clarity. However, these moments arise not from a conscious identification with a modern feminist stance, but from within the logic of dharma, personal pride, and her particular narrative circumstances. To reduce her complexity to a contemporary ideal of feminist outspokenness is to deny her the multiplicity of her voice. It imposes a uniform lens on a character whose power lies precisely in her contradictions, her anguish, her pride, her vulnerability, and her fierce loyalty.

Although Draupadī is often celebrated in modern retellings as a symbol of resistance and fiery agency, her portrayal in Ved Vyāsa's Mahābhārata reveals a much more subdued and circumscribed figure, one whose life choices are determined by male authority. Her polyandrous marriage, often interpreted as a unique act of defiance, is in fact a result of her complete lack of agency. The decision is precipitated by Kuntī's accidental instruction that her sons should share whatever they have brought home, treating Draupadī as if she were an object of alms (bhikṣā) rather than a person with a will of her own. Despite being the daughter of a powerful king, she is never once consulted regarding this arrangement. Later, Yudhishtira justifies this polyandry to King Drupada by stating that the Pāṇḍava brothers have a rule of sharing any 'utkrṣṭa vastu', anything excellent they acquire, as if Draupadī were a prized commodity, not a partner in marriage. Thus, rather than empowering Draupadī, her marriage to five men symbolises her commodification and her role as a tool to sustain fraternal unity within a deeply patriarchal structure.

Draupadī's identity in the epic is tightly interwoven with patriarchal values such as caste honour, obedience, and feminine virtue. Her rejection of Karna during the swayamvara is often highlighted as a rare moment of assertion. However, this moment is not based on personal preference but rather an upholding of caste orthodoxy; she rejects Karna not because she dislikes him, but because he is the son of a charioteer or "suta". In doing so, she reinforces existing casteist hierarchies, even when these hierarchies work against her own autonomy. When Arjuna marries Subhadra and brings her to Khaṇḍavaprastha, Draupadī expresses no anger or jealousy. Instead, she jokes about the situation and accepts it with cheerful resignation, reinforcing the image of the dutiful wife who suppresses personal desires for the sake of family harmony. These episodes suggest that Draupadī's much-celebrated strength lies not in rebellion but in her ability to endure and conform to qualities highly prized in the Brahmanical value system.

Nowhere is Draupadī's internalisation of patriarchal norms more evident than in her harrowing disrobing scene in the Sabhā Parva. When Dushāsana attempts to molest her in the court, Draupadī cries out in anguish not by invoking her right to bodily integrity, but by referring to her own chastity and ritual purity. She laments, "I am a woman who never allowed her to be seen even by the sun or the wind... and today I am standing in the middle of this sabhā, exposed." (Singha 245) Her protest hinges not on the wrongness of sexual violence against women per se, but on the fact that such an act is unthinkable for a woman of her satitva (chaste virtue). By invoking her modesty, privacy, and status as a wife, she presents her violation as an offence against patriarchal codes of womanhood rather than against her individual personhood. This appeal to virtue, while moving and powerful, also reflects the limits of Draupadī's voice within the epic's gendered framework. She asserts her right to dignity, but only through the

language sanctioned by the very structures that have silenced her.

A poignant moment that illuminates Draupadī's internalisation of patriarchal values appears when Satyabhama, the spirited wife of Krishna, curiously asks her how she commands such devotion and reverence from the Pandavas. Draupadī's reply is deeply revealing not of power or passion, but of restraint and servitude. She says she never allows herself to be moved by *kāma* (desire), *krodha* (anger), or *ahaṅkāra* (pride) in her dealings with her husbands. She states, "I think that to be eternal virtue for women, which is based upon a regard for the husband. The husband is the wife's god, and he is her refuge. Indeed, there is no other refuge for her. How can, then, the wife do the least injury to her lord?" (Singha 694) She also adds that she refrains from enjoying anything, be it food, fragrance, or adornment, which the Pandavas do not indulge in. Her conduct is based not on mutual affection or equality but on total submission and self-effacement, glorified as wifely virtue.¹

Shalini Shah in her article *On Gender, Wives and Pativratas* coins a term 'pativratization', where she argues that the characterization of Draupadī in the *Mahābhārata* shows a clear instance of the process where a more truculent and assertive woman is molded to fit the ideal of a devoted wife. "The transition of wife from *patnī* to a mere *pativrata*- a process that can be termed as 'pativratization', is most apparent in the portrayal of Draupadī, one of the central female characters in the *Mahābhārata*." (Shah 80)

More significantly, Draupadī ends her reply by proclaiming that "husbands are the only way for women," (Singha 695) a line that reaffirms her complete acceptance of patriarchal ideology. Her words highlight how the epic idealises a woman who is utterly devoted, unassertive, and obedient, the same instances finding mention in Shah's article. Even though popular and modern re-imaginings portray Draupadī as bold and questioning, Kaliprasanna Singha's translation of the *Mahābhārata* paints a contrasting image of a woman firmly grounded in the duties of *stri-dharma*. This version distances Draupadī from feminist readings that see her as a symbol of resistance; rather, she comes across as a moral exemplar who reaffirms the authority of her husbands and the sanctity of her wifely role. In this telling, her polyandry is not a symbol of sexual autonomy, but another dimension of her submission, where she belongs not to herself but to all five men equally.

Moreover, when we overwrite such characters with anachronistic ideals, we run the risk of distorting the larger moral and philosophical architecture of the epics themselves. The *Mahābhārata* is not a text that rewards moral clarity; it thrives in ambiguity, in competing dharmas, and in the tensions between duty and desire, power

¹Translated from Bengali by the authors

and vulnerability. Draupadī belongs to that space of contradiction. To make her a symbol of pure resistance or unqualified feminism is to extract her from that space and place her in a narrative that might resonate with modern sensibilities, but at the cost of historical and literary truth.

True feminist reading must be one that allows for the freedom of the character to be what she is, not what we wish her to be. In Draupadī's case, this means accepting the paradoxes, the silences, the outbursts, and the retreats, all the fragments that form her identity. Only then can we do justice to the spirit of the text, and to the character herself.

It is not to argue that the varied themes presented in the said texts have been faultily misinterpreted for the anachronistic projection of modern values onto ancient texts, but while traditionally there have been a plethora of literary superimpositions to match the local drive in the cultural retellings which almost creates a tradition of its own, the newer retellings often try to portray a version of feminism which seems rather odd when contrasted alongside the original versions; this phenomenon can be termed as 'feminist superimposition'. Such superimposition of ideals where they originally do not belong also aligns with Showalter's critique of feminist tendencies which often overshadow the softer undertones of a woman's voice which she tries to study as a 'gynocritique' -

"Showalter maintains that Feministic criticism acquires political overtones as it is often mixed with socialism or Marxism, and men happened to spearhead the Feminist movement and Feminist criticism tend to follow the male-oriented tradition and writing. As a result, the cause of women has never received its due attention and justice and is described as it is." (Karmarkar 36)

Agency and Morality

The question of agency in the epics is not simply about whether it exists or not, but about how each woman's choices are shaped by the moral and cosmological structures of her world. Both Sītā and Draupadī act within the frameworks of *dharma*, *nyāya*, and *pativrata-dharma*, even when these very systems restrict them. In this sense, their agency lies not in open defiance but in navigating, and sometimes bending, the codes that govern them. As Shalini Shah explains through the term 'pativratization,' epic women are often reshaped to fit the ideal of the dutiful wife, a process that gradually tames their power and autonomy (Shah 80). Yet Sītā and Draupadī diverge sharply in how this process unfolds and how later cultures have remembered them.

Sītā's journey from Vālmīki's impassioned and assertive heroine to the

sanctified goddess of the *Rāmcharitmānas* reveals how her human agency has been stripped away over time. In the devotional retellings of Tulsidas and in modern nationalist adaptations, she is turned into Lakṣmī incarnate, a figure of divine chastity whose strength lies in her silence. As Mukti Lakhi Mangharam notes, this 'desexualisation' of the epic stems from the anxiety to control women's voices and bodies, aligning moral virtue with quiet endurance and self-denial (Mangharam 76–80). The result is that Sītā's earlier moral clarity and emotional boldness, her ability to question, protest, and even reject her husband are reinterpreted as signs of spiritual submission. Her agency becomes devotional rather than ethical, and her character is absorbed into the ideal of the *pativrata* wife that continues to shape Hindutva's gendered imagination.

Draupadī's story has moved in the opposite direction. Where Sītā's agency has been steadily diminished through sanctification, Draupadī's has been amplified by modern feminist readings. Because she was never deified, and because her polyandry made her an awkward fit within the patriarchal idea of monogamous purity, she became an ideal figure through whom contemporary writers could explore female strength and defiance. Yet in this process, much of her moral complexity has been lost. In Vyāsa's *Mahābhārata*, and even in Kaliprasanna Singha's Bengali translation, Draupadī exercises agency not to challenge patriarchy directly, but to work within the social and moral logic of her world. Her questions in the Sabhā Parva or her restraint before vengeance stem from a desire to uphold *dharma* and *nyāya*, not to overturn them. Her invocation of Krishna, her insistence on ritual purity, and her loyalty to her husbands all reveal a consciousness that seeks moral coherence in a fractured world rather than rebellion for its own sake.

Voice and Silence

Voice and silence form the twin poles through which the cultural memory of Sītā and Draupadī has evolved. In Vālmīki's *Rāmāyaṇa*, Sītā speaks with striking clarity. Her rebuke to Lakṣmaṇa, her confrontation with Rāvaṇa, and her final appeal to Mother Earth are all moments where speech becomes an instrument of moral power. Yet, as the epic was retold over the centuries, her voice was gradually softened and then muted. The devotional tradition turned her speech into prayer and her defiance into devotion. Mangharam argues that this silencing reflects how Sītā was reshaped into a national and religious symbol of the "perfect wife," whose silence came to stand for obedience and moral strength (Mangharam 80–82). Her voice, once sharp with pain, logic, and love, was transformed into a quiet echo of the patriarchal ideals she had once questioned.

Draupadī, on the other hand, begins in silence and later learns to speak. In the *Mahābhārata*, her most powerful words come only after she is humiliated in the Kuru

court. Her speech is framed not as rebellion but as moral inquiry—she asks whether Yudhiṣṭhira had any right to wager her at all. It is a question rooted in the logic of *dharma*, not in a modern vocabulary of rights or freedom. Yet this moment is profound because it exposes the contradictions of the social order itself. In later retellings, her speech grows louder and more political, transforming her into a voice of protest that modern feminism has readily embraced. Plays, novels, and films often present her as the woman who refuses silence, who speaks truth to power. While these versions celebrate her articulation, they also risk simplifying her motives, turning moral anguish into pure defiance.

Both Sītā and Draupadī, then, have been rewritten along the axis of voice and silence, but in opposite ways. Sītā's silence has been idealised as virtue, while Draupadī's speech has been celebrated as rebellion. The truth of their characters lies somewhere in between. Sītā's silences are often strategic; they convey refusal and dignity rather than submission. Draupadī's speech, though forceful, still seeks justice through moral and social reasoning. In the original epics, neither silence nor speech is absolute. Both are modes of expression shaped by circumstance, emotion, and duty.

Conclusion

In re-examining the epic portrayals of Sītā and Draupadī, we are confronted with the complex interplay between literary characterisation, cultural reception, and ideological projection. Both figures, deeply rooted in the mythic and moral imagination of the Indian tradition, have undergone significant reinterpretation over time, recast, in many cases, to suit prevailing notions of femininity, morality, and power. The tragedy lies not in their narratives alone, but in how those narratives have been selectively interpreted and appropriated.

Sītā, once a figure of emotional depth, ethical clarity, and self-possessed resistance, has long been silenced under the weight of patriarchal idealisation. The image of the compliant, suffering wife quietly enduring injustice in the name of virtue has overwritten the textual reality of a woman who defied her husband's orders, openly voiced her indignation, and ultimately refused to be defined by roles imposed upon her. Her subversive acts, veiled under centuries of reverent interpretation, reveal a woman who was not simply a passive symbol of sacrifice, but an agent of moral protest and personal dignity. Yet, through cultural conditioning, this complexity has been muted to serve a narrow archetype of 'ideal womanhood', reducing her to a pedestal more than a person.

Mukti Lakhi Mangharam in her *"Rāma, Must I Remind You Of Your Divinity?"* argues that such altering renditions of the epic contemporary retelling of the Rāmayaṇa

have desexualized the epic to reflect conservative attitudes towards marriage, sex, and sexuality, which have been harnessed by nationalist and patriarchal discourses. The paper disavows the notion of an inherently inflexible and intolerant Hinduism" by highlighting the epic's feminist messages and its sanctioning of alternative sexualities. "Contemporary retellings of the Rāmayaṇa, including Sagar's television serial, have desexualized the epic so that it reflects extremely conservative attitudes towards marriage, sex, and sexuality" (Mangharam 76)

Conversely, Draupadī has suffered from a different, though equally reductive, fate. Rather than being silenced, she has often been made to speak with a voice that is not wholly her own. Modern readings, in the eagerness to reclaim her as a proto-feminist icon, have sometimes projected onto her a monolithic model of resistance that eclipses the emotional, spiritual, and narrative subtleties of her character. The imposition of a uniform feminist framework risks erasing the very contradictions and tensions that make Draupadī such a compelling and human figure. Her anger, her questions, her pain, and her sense of honour are rooted in a dharmic worldview and a specific historical context that cannot be wholly captured through modern ideological lenses.

Together, these two figures reveal the limits and dangers of interpretive extremes. The suppression of Sītā's agency in favour of a patriarchal ideal, and the re-inscription of Draupadī's complexity into a singular feminist narrative are both symptomatic of a larger cultural impulse to make women characters fit into easily consumable categories. But in doing so, we deny them the very freedom that both feminism and textual fidelity should demand, the freedom to be read in their full narrative, emotional, and ethical richness.

A truly humanised and academically responsible engagement with these epics must resist both the silencing and the superimposing. It must allow Sītā to be not just the quiet wife but the woman who speaks, resists, and walks away. It must let Draupadī be not only the fiery rebel but also the anguished, vulnerable, morally entangled woman who navigates her fate within the constraints of her world. In doing so, we restore to them not only their voices, but their agency and with it, the possibility of rethinking what womanhood, resistance, and dignity might have meant in the epic imagination, and what they can still mean today.

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EXPLORING THE MUTTUTHARAI PRACTICE: MENSTRUAL SECLUSION IN RURAL TAMIL NADU



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Abstract

This paper investigates the practice of menstrual seclusion (Muttuthurai) in Govindanallur, Tamil Nadu based on an immersive fieldwork conducted in October 2025. It situates the practice within intersecting structures of caste, gender, and religion. Interviews with the women in the village revealed how deeply embedded social norms continue to govern women's mobility and access to resources despite improvements in physical infrastructure related to sanitation. Drawing on narrative vignettes and empirical observations, the paper highlights the lived realities of stigma and exclusion that the women face. The paper proposes community-centered policy interventions aimed at fostering menstrual health awareness and dismantling restrictive socio-cultural practices as a solution.

Introduction

Govindanallur - Site for Exploring the ‘Unusual’

As part of the Rural Immersion and Experiential Learning programme at National Law School of India University, we interned with PRADAN in Virudhunagar, Tamil Nadu. PRADAN’s interventions in Virudhunagar address the Aspirational District Programme (ADP) focus areas, as Virudhunagar is one of the two Aspirational Districts in Tamil Nadu. Govindanallur, located 42 km from Virudhunagar, was the assigned fieldwork site for me. As per the local health department data, the hamlet spans a geographical area of 6.3 sq km inhabited by 459 people (out of which 43.55% belong to the Scheduled Caste). The village has 4 settlements - 3 Scheduled Caste (Pallan) and 1 mixed caste (Pillai and Thevar, OBC).

Situating the Field Location - Mapping the Institutions in Govindanallur

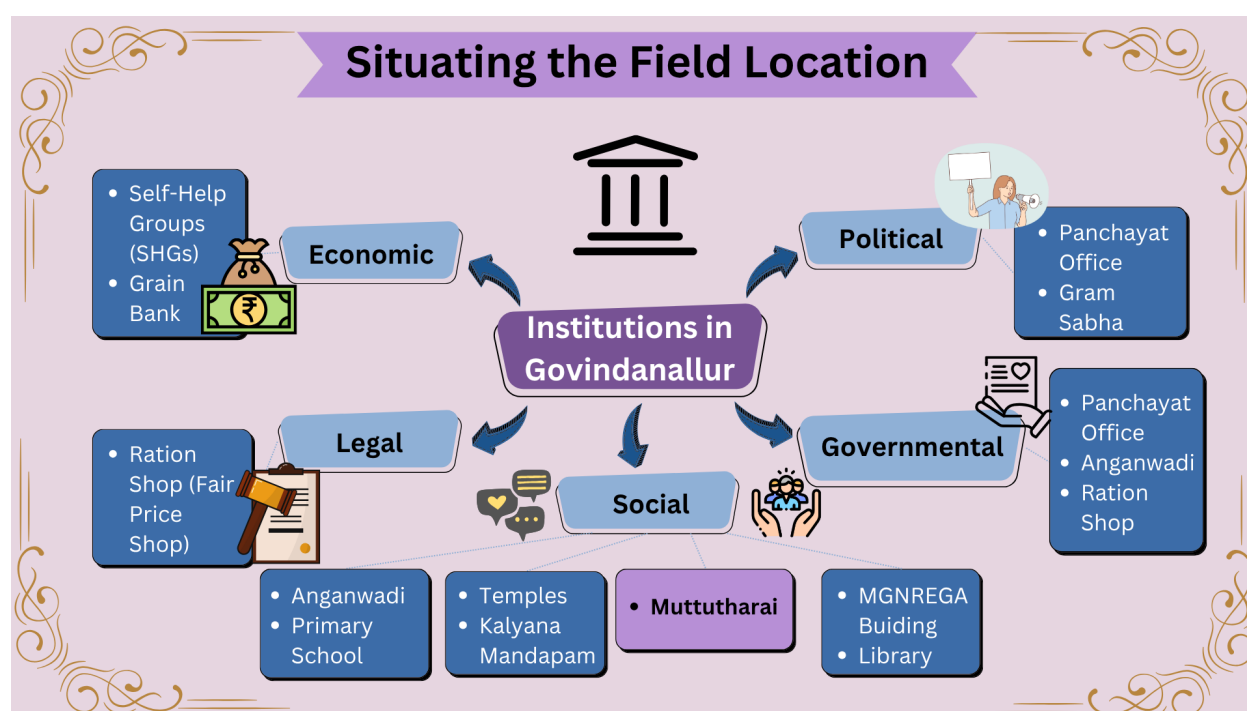


Fig:1

As can be seen, the institutions in Govindanallur primarily focus on welfare and rights-based provision such as the Ration shop, Anganwadi, Primary School and Panchayat Office, which operationalise national policies such as the National Food Security Act and Right to Education. But what stands out in the map are the multiple social institutions created by the communities themselves, such as the temples and the conversion of a SHG building into the Muttutharai resthouse. Unlike the formal, rights-driven institutions that execute top-down directives, these community-created spaces

reflect the active role played by residents to create spaces that foster meaning-making and solidarity within the community.

Key Institutions in Govindanallur

I found the following two institutions to have a more tangible impact on the everyday lives of the residents of Govindanallur. The first institution is the Anganwadi which reminded me of the history of the National Food Security Act, 2013. The framing of the Act as an Immediate Obligation to be performed by the State and the Court's initial involvement through the Writ of Continuing Mandamus played a crucial role in ensuring the Act's implementation. This legal framework proved pivotal and ensures the Right to Food in even a small hamlet such as Govindanallur. Although there are challenges such as limited personnel in the Anganwadi, the central role played by the Anganwadi in serving midday meals, tracking health metrics of children via the POSHAN app and providing Sathu Mavu to meet the nutritional needs of women has made a significant difference in the lives of residents in Govindanallur. The second institution and the focus of this paper is the Muttutharai which is a 'resthouse' where menstruating women of differing age groups are expected to stay for the duration of their menstruation in Govindanallur. The building, originally intended to be used by Self-Help Groups, has become a key institution shaping menstrual practices for women. While the Muttutharai can be seen as addressing the needs of the women in the community in a culturally accepted manner, it does raise questions about potential stigma and exclusion surrounding menstruation. The impact of the rootedness of such a practice and how it impacts the lives of women is also of concern.

PRADAN'S Impact in Virudhunagar

The impact of PRADAN in Virudhunagar, while promising, is still in its early stages. Although the NGO has been in Tamil Nadu since the 90s, it started working in a full-fledged manner in the district only from 2019. Therefore, its interventions are relatively new and limited to technical projects such as tank restorations and supporting the setting up of Atal Tinkering Labs as part of Atal Innovation Mission (AIM) under the ambit of the Aspirational District Programme. Although their expertise in managing such technical projects is evident, these projects require collaboration with functionaries such as the Panchayat President (for tank restorations) and School Staff (for AIM). Such a collaboration can obscure PRADAN's role making it difficult for the community to link PRADAN directly to the project outcomes.

In Govindanallur, PRADAN's interventions include tank restoration and anemia prevention sessions. Despite these interventions, awareness about PRADAN seemed to be low, evidenced by people struggling to associate these projects directly with PRADAN. For instance, when we surveyed agricultural practices in the village, the

restored tank was not identified as a key water source for agriculture, which was one of the primary objectives of the restoration project. On the other hand, the anemia prevention sessions have a great potential if the scope is expanded to topics surrounding sexual and reproductive health. In influencing the conversations surrounding health in the village such as through menstrual health awareness, PRADAN can create an impact that will positively benefit the health and lives of women in Govindanallur.

Overall, improving outreach efforts to engage the broader communities present in the district through awareness interventions surrounding social aspects of people's lives would aid in boosting PRADAN's impact.

Exploring the Muttutharai Practice in Govindanallur

Upon exploring the village in my first week at Govindanallur, I 'accidentally' came across the Muttutharai. I was passing by the Muttutharai when I was called by one of the residents to come to her house. I was told to come from the main path and not through the land adjacent to the Muttutharai. When I asked why I could not use the latter path, they explained that I am not allowed near the Muttutharai as menstruating women stay there. One of the younger women present there explained that all women in the village are expected to stay in the Muttutharai for the duration of their menstruation. This discovery made me curious to understand this practice and its implications for women in the village. To analyze the Muttutharai practice, this paper will draw on Kimberlé Crenshaw's theory of intersectionality to explore why this practice is a burden borne exclusively by Dalit women, and Mary Douglas's theory of purity and pollution to understand the deep-seated cultural logic behind menstrual seclusion.

Literature Review

In 2019, a group of United Nations human rights experts acknowledged that "the stigma and shame generated by stereotypes around menstruation have severe impacts on all aspects of women's and girls' human rights" (United Nations 2019). In Govindanallur, all these rights are being impacted with the practice of Muttutharai where the women are separated from the community due to certain stigmas surrounding menstruation. Stereotypes surrounding menstruation can have a lasting developmental impact on women because across cultural contexts, constructions of menarche and menstruation are strongly tied to notions of 'womanhood,' interlinked with reproduction and emergent sexuality (Hawkey, Ussher, and Perz 2020, 110). This construction of womanhood being shaped by menstruation has important implications because the Muttutharai practice becomes applicable from menarche itself shaping and limiting the conception of what it means to be a woman. Added to this is the result from

studies that emphasize how lack or 'poor quality' of girls' knowledge leads to distress, typically by describing how menarche triggers anxiety, panic, fear, and worries (McCarthy and Lahiri-Dutt 2020, 19). The turbulence of menarche along with the lack of accurate, timely information on menstruation in such cultural contexts can affect the perception of menstruation and how it shapes womanhood. When a practice such as Muttutharai is added to the mix, the stigma and seclusion surrounding menstruation takes a more tangible form impacting the lives of women. This is evidenced by seclusion practices such as the Chaupadi practice in Nepal which reminds women that they must police themselves once they start menstruating, that young women become 'polluted' and 'impure,' and that they must conduct themselves, accordingly, including secluding themselves from men and boys (Rothchild and Shrestha Piya 2020, 924). This logic aligns with the work of anthropologist Mary Douglas, who argued that societies maintain order by creating symbolic boundaries between the 'pure' and the 'polluting,' with menstrual blood often classified as a substance that dangerously crosses these lines. In India, restrictions are placed on women and girls during menstruation, and the tradition of excluding menstruating women and girls from various activities continues (Rajagopal and Mathur 2017). Although such practices can operate at the level of the household in several places in India, practices such as seclusion in menstrual huts represent the most extreme manifestation of menstrual stigma. These huts have been found in various parts of India such as Maharashtra, (Mathur 2018), Karnataka (Pailoor 2020) and Tamil Nadu (Pandian 2023). In Tamil Nadu, Koovalapuram and its neighbouring villages— Chinniahpuram, K Pudupatti, Saptur Alagapuri, and Govindanallur —had been in the news for sequestering menstruating women for five days, and new mothers and newborns for 30 days at muttuveedu/muttutharai (Pandian 2023). But the news has largely focused on capturing the experiences of women in Koovalapuram and there is not much effort made to document the experiences in a more intersectional and nuanced way which is something that my study attempts to do. To achieve this, the study employs the framework of intersectionality, developed by Kimberlé Crenshaw, to analyze how overlapping systems of power—in this case, caste and gender—create a unique and compounded experience of discrimination. What is also of importance in Govindanallur is that the practice is only followed by the Dalit women in the village and not the OBC women who stay separately within their house itself instead of staying in a separate Muttutharai. This is striking because non-Hindus, Janajati groups, and low castes and Dalits tend to be more socially lenient about menstruation and often regard it as simply a natural process (Rothchild and Shrestha Piya 2020, 925). There could be an element of Sanskritisation present here where the lower castes emulate practices followed by the upper caste communities in an attempt to seek upward mobility. The extent to which this applies to the Scheduled Caste community remains to be seen. But it highlights the interconnectedness of the question of caste to this socio-religious practice.

Contextualising the Muttutharai - History, Evolution and the Present

The Muttutharai is considered to be a 'resthouse' for menstruating women of all ages for the duration of their menstruation. This practice is present not only in Govindanallur but also nearby villages that of Koovilapuram, Saptur Alagapuri, Chinniahpuram and Pudupetti. Adherence to the Muttutharai practice, presence of a significant Dalit population and worshipping of Thangamudi Saami (the God) and Muthirulan Pandaram (the God's seer) are commonalities shared by these 5 villages. The origin of the Muttutharai practice is traced back to these religious figures and their powers as narrated by multiple respondents during interviews conducted in Govindanallur.

Origin of the Muttutharai Practice

As per the locals, there was Thangamudi Saami (God) and Muthirulan Pandaram (his seer). God had bestowed powers on to this seer who was like his physical manifestation on Earth. The respondents shared stories that began with explaining the powers of this seer who could control the ploughing of the fields just by sitting near a tree with his feet up in the air. His powers are so great that he finds treasures in wells when he draws water. After explaining these powers, they move onto how the seer was travelling horseback when he saw *vanaathi* or washerwomen (tasked with washing clothes of people in the village in those times). He was about to throw a *thundu*/piece of cloth towards the *vanaathi* when she exclaims that she is a *velli aal* (literally, outsider; here, woman with menses). When she said this, the cloth stopped midway in the air, and the seer gave a boon to all the washerwomen that they will not get their periods when they are in this village doing this work. They will only get their periods twice - once during puberty and once before childbirth. The other women were told to stay in isolation separately during their periods (God through the seer cannot stop periods for everyone, hence, the others are to stay separately). There is also a belief that the deities of Thangamudi Saami present in all 5 villages were not placed by humans but that these deities, in a physical form, travelled on their own across hills and mountains to choose a resting place. There is a sense of feeling like chosen ones and, therefore a sense of obligation to listen to God and not incur his wrath.

Evolution of the Muttutharai Practice

In earlier times, there used to be a mudhouse that the women in Govindanallur had to inhabit during their periods. This would get flooded during rains and they often had to spend the night standing knee deep in water in the Muttutharai. They would have to consume food in either banana leaves or *mannchattis* (vessels made from mud), and

both of these had to be discarded in the forest after use. The food would be either poured to them or slid down to them using a *taghara pathal* (corrugated metal sheet) as a barrier to separate the food receiver and provider. Often, the person who is providing food themselves had to stay outside the house for having to come in contact with the menstruating woman. They also could not speak to anyone before in addition to the physical separation. They had to go to the forest to relieve themselves and to burn the used clothes.

However, things have changed now. There is a sturdy structure that houses the women. There is a washroom attached to the building for their use. Although it does get congested if many women have their periods at once, the structure is still better than earlier times with a fan, windows and a place to hang their belongings. Food is passed onto them normally and they can talk to everyone from a distance. But the web of practices defining this practice have evolved with time with a responding profoundly remarking that "the building changes but not the practice". Overall, there is an appreciation for the amenities that they have as a result of the building.

Current Beliefs and Behaviors Surrounding the Practice

Key beliefs and behaviours emerging from interviews reveal several recurring themes. The practice is rooted in the perception of menstruating bodies and items as impure, which manifests in behaviours like elaborate, multi-day purification rituals before re-entering the house, the inability to bring personal items back home from the *muttutharai*, and even rules requiring a mother's baby to be handed to her without clothes for feeding. Adherence is strongly motivated by a fear of negative consequences, with women expressing beliefs that not staying in the *muttutharai* could lead to snakes entering the house, family members falling sick, or facing 'the wrath of God.' Furthermore, the practical experience of staying in the shared *muttutharai* space is often challenging, with participants reporting unclean washrooms, overcrowding and congestion, and the logistical difficulty of getting ready for school on time when everyone is using the facilities simultaneously

Research Questions

The research began by gathering demographic details such as name, age, marital status, and number of children. The inquiry then focused on five key aspects: structural experience, menstrual knowledge, social enforcement, intergenerational changes, and individual reflections. A modified set of questions was used for male respondents. To understand the structural experience, it questioned why the *muttutharai* was built in its specific location, the sufficiency of its facilities, and the restrictions women face there.

Menstrual knowledge was assessed by asking about the age at which women started attending, the duration of their monthly stay, and how they use and dispose of menstrual products. The theme of social enforcement was explored through questions about who in the family sends them, the role men play in enforcing the practice, and the village's perception of menstruating women. To gauge intergenerational changes, the research asked about the practice's historical origins, its presence in other villages, and any changes over time. Finally, individual reflections were captured by asking how women personally feel about the practice, whether they view it as a burden or a necessity, and to share their first and recent experiences. A modified set of questions was directed at a secondary sample of male respondents to understand their knowledge of the practice, their opinions on it, and their perception of its future.

Research Methodology

The study employed an exploratory qualitative design given that the Muttutharai practice had very little prior documentation. Such an approach becomes ideal to capture the nuanced beliefs, practices, and lived experiences associated with the practice. The goal was to gain an in-depth, contextual understanding of this practice and how that shapes the lives of women in the community rather than a statistical snapshot. The immersive fieldwork was conducted over 25 days in Govindallur. This duration allowed me to engage with the members daily, build rapport over time, observe their daily lives, and gain the trust necessary to discuss such a sensitive topic.

The sample was obtained through snowball sampling. For the duration of my fieldwork, my stay was at a community member's house. This meant that my starting point for conversations on this topic was the community member and their family. It was through their help that I could identify women who would be willing to speak to me. The interviewed women would then further introduce me to other women. Given the sensitive nature of the topic, it was best to rely on such a sampling method. The primary sample was 30 women who met the inclusion criteria of having stayed in the Muttutharai at least twice. This would mean the initial one-month stay prompted by menarche and then the regular stay for the duration of the period. While I was initially concerned with only interviewing women, it slowly became clear that men had a significant role to play in the extent to which the practice was enforced or in what manner. Thus, I interviewed 10 men belonging to different age groups to understand what they felt about the practice.

Semi-structured interviews were conducted, which allowed for guided discussions while providing the flexibility to explore unique insights. The obtained raw data from interviews were then subjected to thematic analysis. This was chosen to

identify and interpret patterns, providing a detailed understanding of the practice's cultural, social, and policy implications. I started by transcribing the semi-structured interviews and read through the obtained data repeatedly. Then, I began coding the data by identifying certain key phrases, ideas and concepts that seemed to be coming up across all the interviews. Then, related codes were grouped to form broader themes. Such an analytical approach allowed me to capture the practice in a detailed manner. This was complemented by a narrative case study approach to highlight age-wise vignettes and rich personal accounts.

Researcher Reflexivity and Ethical Considerations

Researcher reflexivity and ethical considerations were central to navigating the fieldwork. My positionality as a young, urban Malayali woman shaped my interactions with the community and how I was perceived. While I can understand and speak conversational Tamil, my non-native fluency in Tamil, manner of speaking and distinct identity markers such as clothing meant that I was seen as an 'outsider'. This presented challenges such as initiating conversations, building rapport, and having to learn the linguistic nuances. While the community was generally warm and interactive, the rapport required to have sustained conversations had to be built slowly. Quite interestingly, it was only when the children in the community took a liking to me that the mothers started to talk to me. Even then, the process required constant self-awareness and social maneuvering. For instance, I could only interview men in the presence of their female relatives/partners. Furthermore, the fieldwork actively challenged my own urban-centric assumptions. I had anticipated a pervasive 'male gaze' similar to my experiences in cities. But I found the interactions in the village to be largely respectful. Similarly, I expected that a married woman with kids is likely to be older than me. However, this turned out to be wrong on many occasions. Lastly, the interviewing process was rarely ever one-sided. Oftentimes, I was expected to share about my life and family so that an equal barter of information was achieved. While my "outsider" status did impact my initial interactions, it also curiously motivated the community members to interact and engage with me more.

Given a recognition of my position as an outsider, I had to take active steps to ensure that all ethical considerations, including obtaining informed consent and ensuring the anonymity of respondents, were upheld throughout the process. Interestingly, it was an initial conversation with a community member that prompted me to design the informed consent form in Tamil and have it printed out. In my interaction with this member, they feared that my research would end up portraying the practice in a negative light as 'torturing women'. While initially I was indeed surprised by the practice, I took active attempts to approach its study with curiosity rather than

assumptions or judgment. This incident also made me reflect on my responsibility to mitigate any potential negative impact from this "intrusion" into their lives. Thus, ensuring informed consent becomes crucial in providing them with complete information on how whatever they share would be utilized, why I am doing it and to let them know that they can stop the interviews whenever they feel so or even take back their consent. Attempts were also made to ensure the anonymity of the interviewees.

Findings

Both quantitative and qualitative data were collected and presented using a life cycle lens to illustrate age-based variation in adherence and perception.

Quantitative Findings

Perception of the Practice

Based on interviews with 30 women respondents, 63.33% perceived the practice as a burden, 26.67% saw it as a necessity and 10% saw it as a burden and a necessity (as visible in the bar chart titled 'Perception of the Practice').

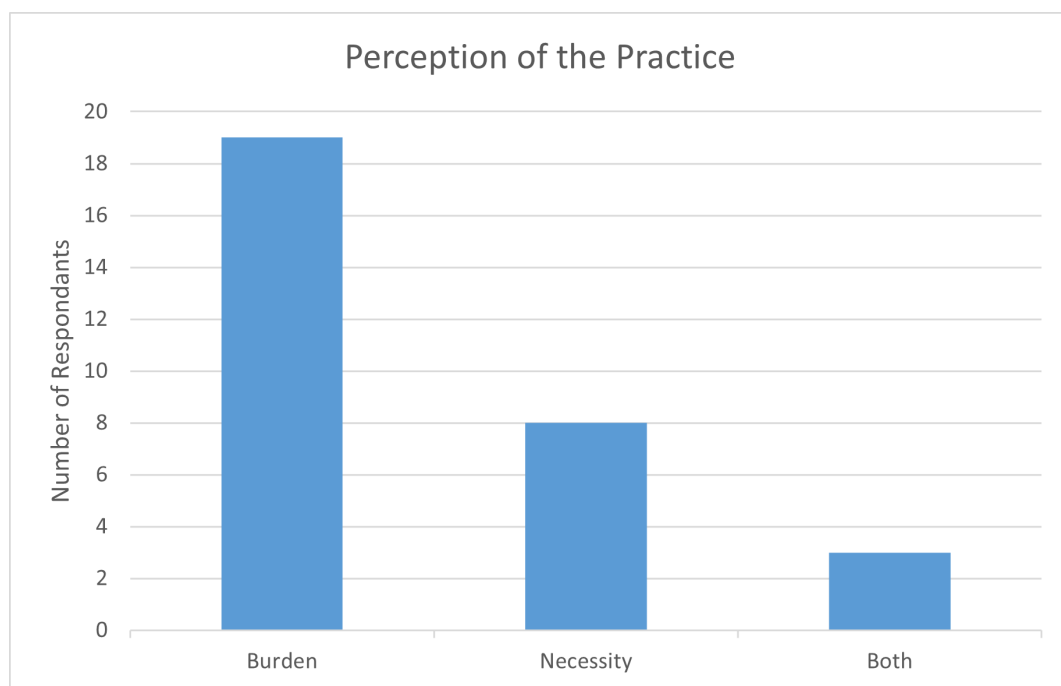


Chart:1

Adherence to the Practice

Out of 30 women respondents (n = 30), 98% adhered to the practice and only 2% did not.

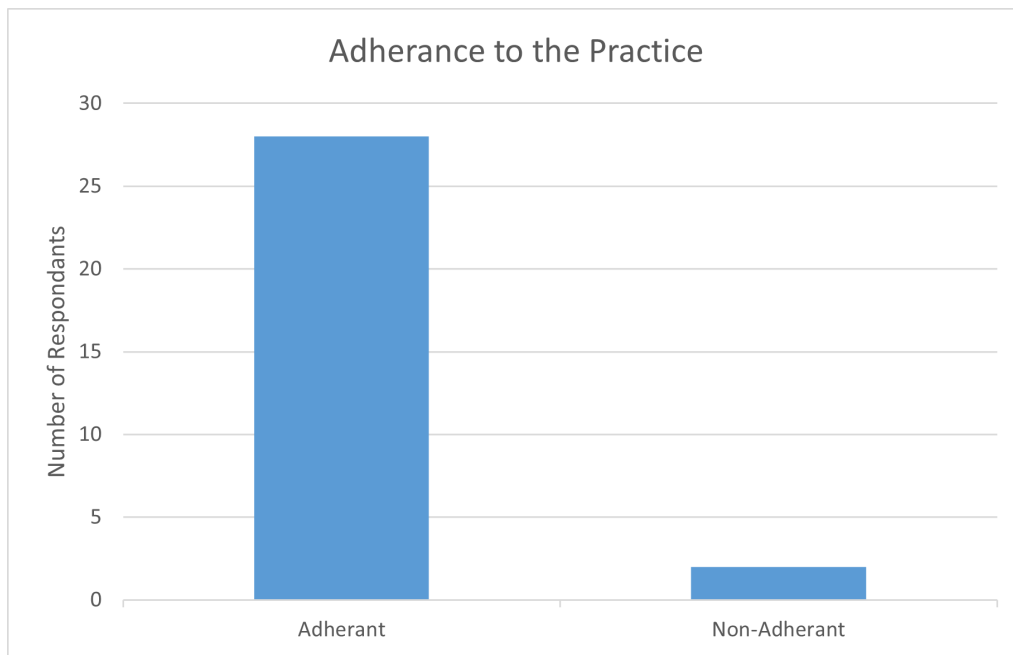


Chart:2

Crosstabulation of Age and Perception of the Practice

There seems to be a shift in the perception of the practice from burden to necessity as the woman ages which is confirmed by the narrative data as well.

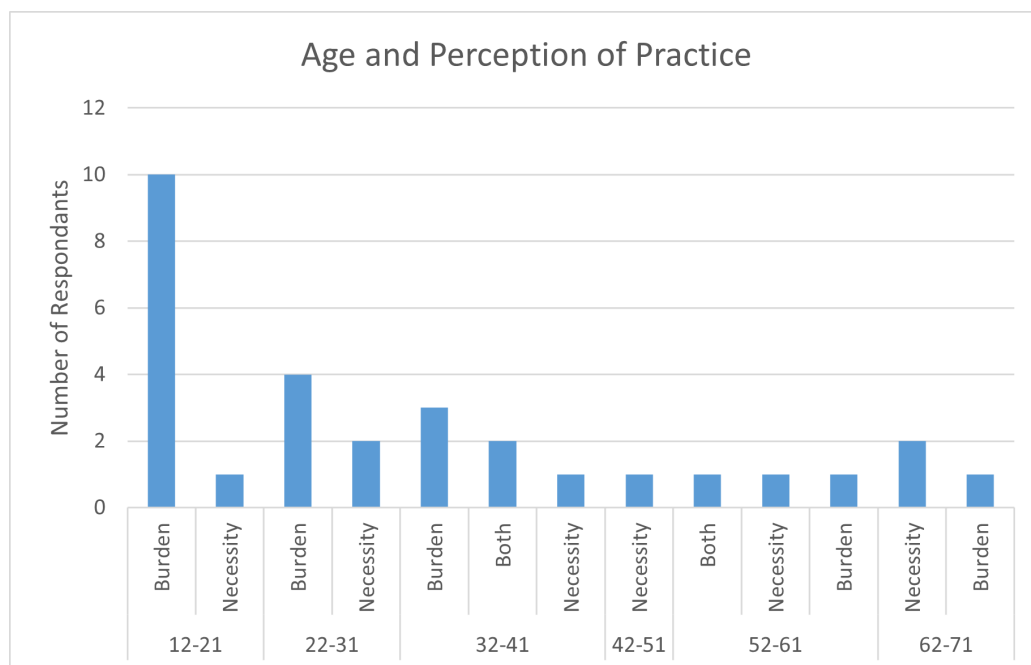


Chart:3

Crosstabulation of Age and Adherence to the Practice

Only women in the 32–41 age group reported non-adherence, with reasons

explored through the Geeta narrative vignettes below.

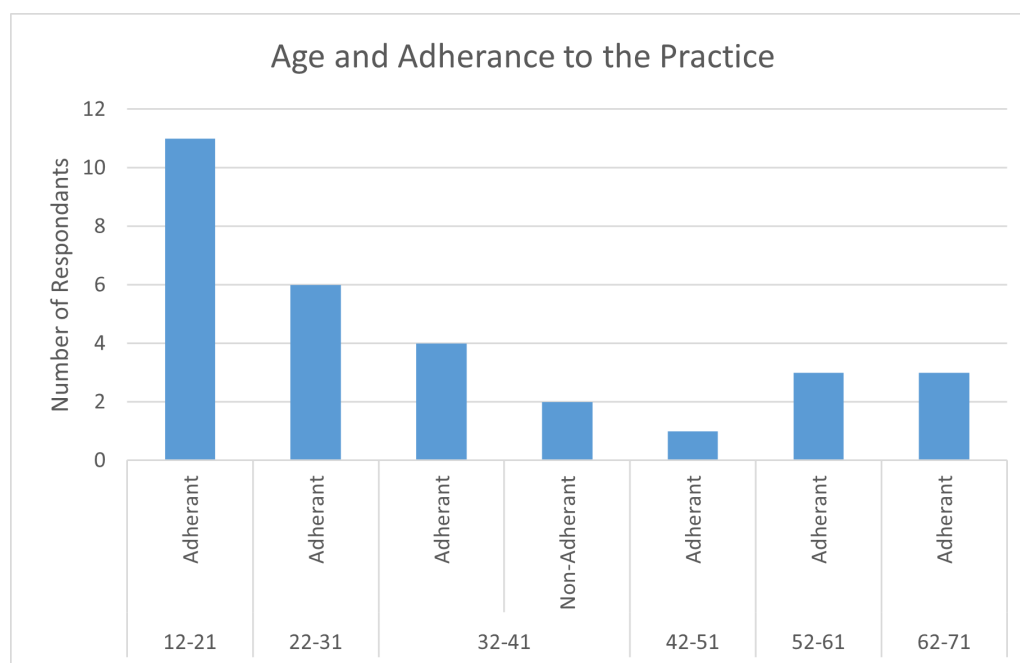


Chart:4

Perception of Male Respondents

Among 10 male respondents ($n = 10$), 70% supported the practice, 20% seemed open to changes, and only 10% did not support it. Most adolescent male respondents supported the practice, often citing misconceptions about menstruation as impure. Men with female partners, close female cousins and daughters were the ones open to an end or change to the practice. Their views are important because they play an important role in enforcing the practice.

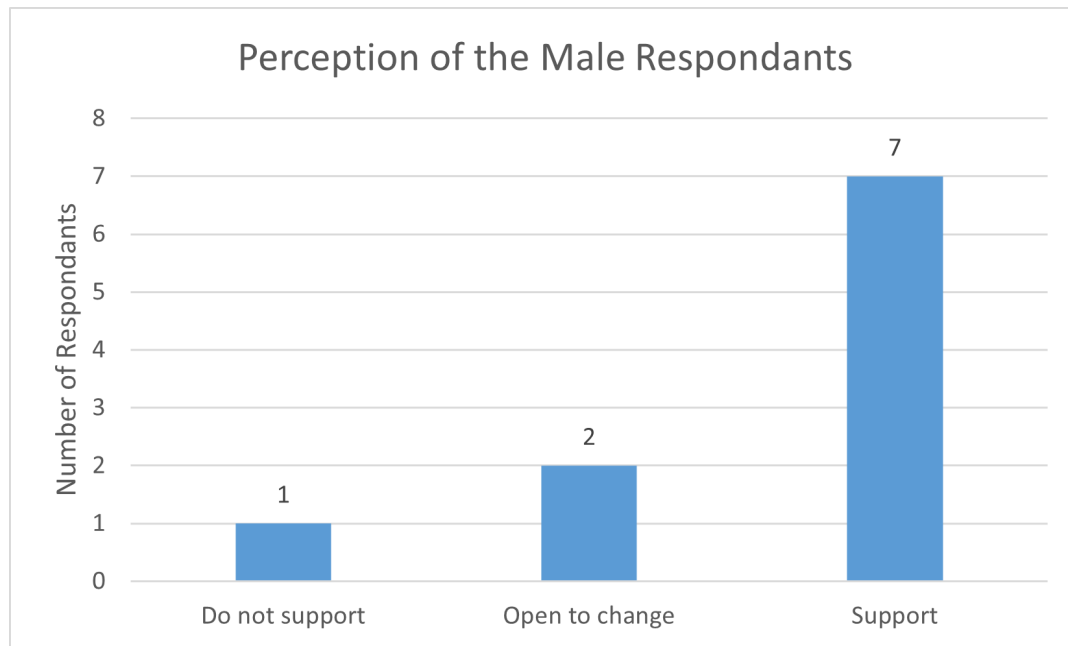


Chart:5

Qualitative Findings

To understand the story behind the quantitative data, a qualitative analysis becomes important. The interviews revealed three core themes that answer the study's research questions. The analytical framework for the detailed narrative that follows is provided by the following three themes:

- **Generational Shifts in Perception:** A clear life-cycle shift occurs in how women perceive the practice. There seems to be initial resistance as adolescents, followed by acceptance, and finally, acting as the enforcers of the practice themselves as elders. This answers the research questions on intergenerational changes and individual reflections, showing how personal feelings evolve with age and social roles.
- **Fear and Social Enforcement:** Adherence to the practice seems to be primarily driven by a deep-seated fear of divine wrath and social consequences. This sheds light on the research question on social enforcement by revealing that the practice is upheld by a combination of religious fear and community pressure.
- **Caste Hierarchy and Gendered Stigma:** The practice is uniquely enforced along caste lines given that it is mandatory for the Scheduled Caste (Dalit) women but not for the OBC women in the village. This addresses the research question on the structural experience of exclusion and shows how social enforcement is applied unequally.

Life-Cycle Narrative - Geeta and the Gendered Continuum of Seclusion

The following composite narrative provides a rich illustration of how the three themes of generational shifts, fear, and caste become considerations for women in Govindanallur. "Geeta" is not a single individual but a composite character whose experiences are drawn from the recurring accounts of the 30 women interviewed for this study.

Introduction to the Muttutharai Practice: Geeta as an Adolescent

One fine morning, Geeta woke up to find blood stains on her clothes. Feeling alarmed, she informed her mother with hopes of obtaining an explanation. Instead, her mother immediately informed all her relatives and neighbours that she has come of age now. People started streaming in to have a look at her, making her feel perceived. Amidst this, her mother instructs her to follow her to the forest with the stained clothes which are to be burnt. She is provided with no reason as to why the clothes that she liked and had worn for all these years were being burnt. On the next day, she is asked to put on a dhaavani (dress), hold a lemon and cover her face with a shawl. She is then made to walk to the muttutharai where a makeshift structure made of banana leaves has been arranged. Her hair is oiled and manjal (haldi) is applied to her face which is later washed off by the pouring of the water. These rituals do not make any sense to her, but she obliges. Then, she is asked to change into clothes provided by her maternal uncle and is decked in jewelry. She comments that she looks like a bride. There is talk of fireworks, drums, and dance being arranged, which starts to make her feel excited knowing that her blood stain could be an occasion for celebration like the kind seen during festivals. She can smell meat being cooked and there is a line of people waiting to take pictures with her, but they don't stand too close to her. She does not register it as she is too excited to see everyone enjoying the celebrations. Slowly, the people start heading to her house for food. She also decides to follow them but is told by her grandmother that her food is being brought here. She does not think too much of it. After having the food, she expresses a desire to change out of her clothes and to head home. She is stopped and told that her home is going to be the muttutharai where she has to rest for the next 1 month. A range of emotions run through her head as she grapples with what this would mean for her. The first few days she wakes up with a cold sweat in the night scared by her unfamiliar surroundings and cries as she misses her home. Her days are long, and she usually sits on the steps of the muttutharai's entrance gazing at the common area where others are moving about freely. She is expected to walk to the compost pit to dispose her used sanitary pads every day. She is also unable to make it to school on time on some days as she shares the muttutharai with other women. Her friends start noticing her unkempt appearance and the toe ring on her feet (indicating coming-of-age) making her feel scrutinised. After returning from

school, she has to rely on someone from her family sending her food, water and clothes in a timely manner. She feels neglected and sidelined by her loved ones who take great efforts to distance themselves from her. At the end of 30 days, she gets her periods again and now must stay in the muttutharai for 15 days. She feels deflated and resigned to her fate. However, the sight of another girl who comes in provides her with some reprieve and they gradually bond over their shared sorrows of having to stay away from home.

Continued Exposure to the Muttutharai Practice: Geeta as an Adult

Geeta has been going to the muttutharai for almost 10 years now. She has figured out some small ways in which she can hold on to some of her freedoms. She goes to the areas around the colony which is accessible since there are no temples in that area. She has started to go to the end of her street to collect her food. She spends time at the common area where her friends sit and gossip or use the swing. She sits at a distance from them, but she is happy to be able to at least witness what is happening and be included even if from a distance.

She has figured out her routine for when she gets her menses now. Her utensils, bottles and clothes that are to be worn are already in a cover hanging inside the muttutharai. She cannot take these back, so she just left it inside. She has gotten used to the impositions on her and how people keep a distance from her. She only feels sad when her menses coincides with an important festival or a wedding which she can then not attend. She hides her sadness and lives vicariously through the various accounts shared by her friends of such celebrations.

But Geeta has other reasons to be joyous. She has been seeing a man in the village who she is soon to be betrothed to. He is a nice and caring man with a government job, but he never stops her from going to the muttutharai. He has seen his mother and sister going to the muttutharai since he was a child. He knows that it is the norm in the village. She does not question him on it because she knows it is futile to question. Geeta used to question her mom a lot, but she would just be told that not going would incur the saami's wrath and would invite bad luck and ill-health to the household.

She used to protest initially but slowly, she stopped. Her friends and people around her had made their peace with it. She would get scolded if she said anything against the practice. She had other things to focus on now such as working at the jute factory and her marriage. Geeta gets married and stops going to the jute factory because of opposition from her in-laws. Earlier, she could at least have some sense of normalcy when she was away at work and would just have to come back to sleep at the Muttutharai. But now, her life was defined by the chores at the household and catering to her family. Nevertheless, she slowly started to get used to her new life.

Amidst this, she gets to know that she is pregnant. It is a joyous occasion for the family who were looking forward to this. She has some relief from going to the Muttutharai as she would not get her periods. She observes girls of differing ages still going there and feels glad that she does not have to at least for 9 months. After her pregnancy, she is told to stay at the Muttutharai again. She does not even question it. She obliges to please her family. She stays in the Muttutharai away from her family and her baby is brought to her sans-clothes by her mother-in-law whenever the baby cries for food. She has to shower every time before she can feed the baby. This is really tiring for her which then raises a discussion in the house whether she can just stay in the house. She had seen others doing the same and just painting their house after a month in an attempt to bypass the tradition. Her in-laws agree and she does this for the rest of her two pregnancies as well. This provides her with some relief.

Acceptance of the Practice with Age: Geeta as an Old Woman

Geeta is in her early 40s now. She has had 3 children who are all grown up now. Two of them are girls who have just gotten their periods recently. She sends them to the muttutharai fearing any harm to her family and to avoid any comments from others in the village. She had observed how some of the older women catch hold of the young girls and ask them why they hadn't been coming to the muttutharai since almost a month. There was always at least one person monitoring if everyone was coming to the muttutharai or not. She had gotten used to going to the Muttutharai but would worry that her husband or children had to manage things at the household on their own now. She would sometimes have to wait a long time to receive food and water from them. But she always made sure that her girls received the food on time. She would commiserate with other mothers that they wish they would not have to send their daughters to the muttutharai. But she knew she could not differ from the village tradition. Her mother-in-law and mother were also involved in ensuring that her daughters were going to the muttutharai. She would respond to her daughters' questions with the same answers that she used to get and would tell them to stay there even if they cried or protested staying there. She is in her 60s now. Her children are all married now. She got her menopause and does not have to stay in the muttutharai anymore. But she keeps an eye out to ensure that her daughters, daughter-in-law and granddaughters are all going to the Muttutharai. With age, her fears of incurring God's wrath have increased, so, she plays a more active role in enforcing the Muttutharai practice.

Taken together, these vignettes offer a window into how socialization into menstrual seclusion is both normalized and internalized across life stages. The

following section analyzes these findings in relation to caste, religiosity, and gendered agency.

Analysis and Discussion of the Findings

The thematic findings, when analyzed further, reveal a complex interplay between social control, cultural identity, and the tensions of modernity. This section delves deeper into the specific factors shaping the stringency of the practice, the implications of its caste-based enforcement, and the clash between this tradition and modern constitutional values.

Stringency of the Practice

The stringency of the practice, i.e., the degree to which it is enforced, appears to be shaped primarily by two factors:

Age and Stringency

Adolescents and young adults are subject to stricter enforcement of the practice, possibly due to prevailing beliefs that view the onset of menstruation (menarche) as especially impure and requiring greater social control. This is powerfully illustrated in the composite narrative, where the experience at menarche is marked by a mandatory one-month seclusion. Conversely, the only non-adherents in the village belong to 32-41 age group. One respondent explained her non-adherence as a practical necessity such as having to stay home to care for her young children while her husband was away. Another respondent mentioned that there is no one to take care of her household when she is away, as both her children and husband are away for education and work, respectively. It is only such practical reasons with the approval of the family members that have made it okay for them to stay in the house instead of going to the Muttutharai. Even then, they practice seclusion by either staying in the verandah or in one corner of the house.

Family's Religious Beliefs and Stringency

The data also seems to indicate that the closer one is situated to the temple, the stricter the enforcement of the practice by the woman and her family so as to not incur God's wrath. The spatial maneuvering that women must do to avoid crossing the temple adds an extra layer of seclusion.

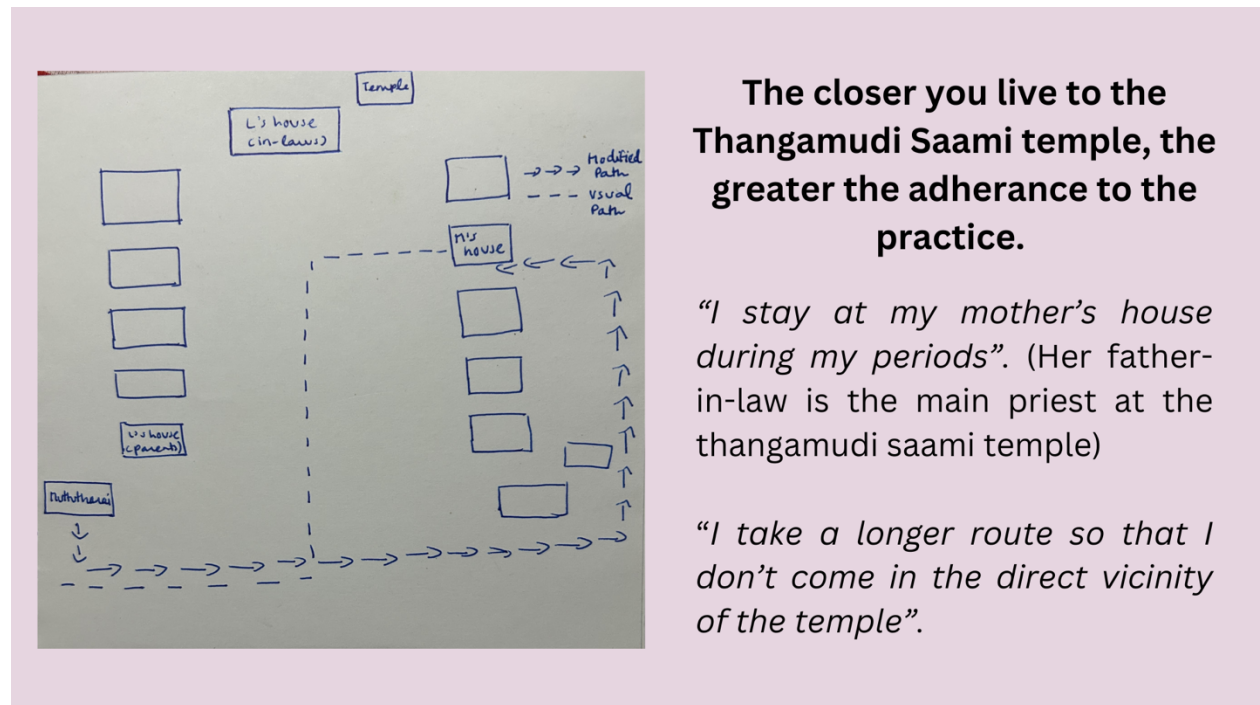


Fig:2

The Spectre of Caste

The intersection of caste and gender emerges sharply in Govindanallur. Contrary to broader national patterns where higher caste women tend to follow stricter menstrual restrictions, here it is Dalit women who adhere to the Muttutharai practice, while OBC women do not. This inversion invites analysis: Is this a case of Sanskritisation, where Dalit communities adopt upper caste rituals to seek upward mobility? Or is it more about intra-caste forms of control and marginalisation?

Dr. Ambedkar's notion of graded inequality helps explain how caste operates through layers—where even among the marginalized, certain norms persist to maintain hierarchical order. The Muttutharai hut itself which is where the composite character must stay functions as a physical manifestation of an intersectional burden as characterized by Crenshaw's theory of intersectionality. Here, the practice reveals a gendered caste hierarchy where a Dalit woman bears the brunt of both caste and gender-based stigma.

Clash of Modernity and Tradition - Relation to the Sabarimala Judgement

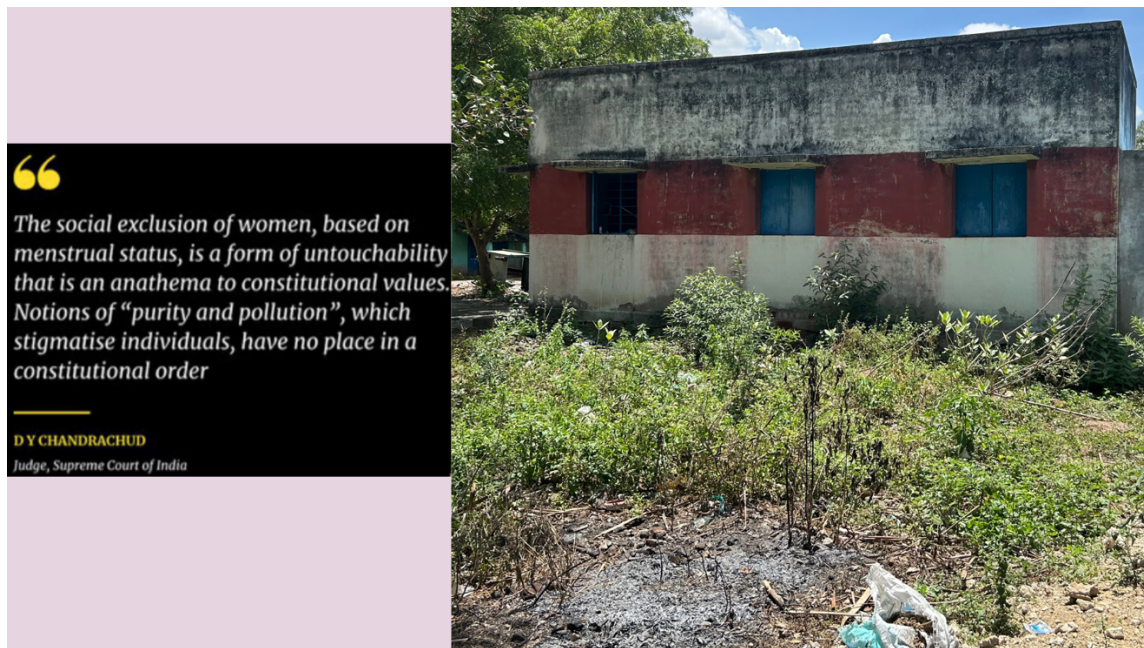


Fig:3

The practice's emphasis on "purity and pollution"—a powerful social logic theoretically grounded in the work of anthropologist Mary Douglas — directly conflicts with modern constitutional values. The Sabarimala judgment's emphasis on viewing menstruation-related exclusion as a form of untouchability (Article 17) opens space for reinterpreting such customs as unconstitutional. Justice Chandrachud's lens of transformative constitutionalism is relevant here: it advocates challenging discriminatory social norms, not just through law, but by centering dignity and equality.

This is important even in the case of Govindanallur. While the practice in itself can be seen as harmful to women, change must be demanded from within the community, keeping in mind the rights of the community to hold on to their own traditional beliefs. A fine line must be drawn to address the tension between the need for modern constitutional values and a community's socio-religious beliefs.

Stakeholder Mapping

In a culturally sensitive context where menstrual stigma stems out of a socio-religious practice, policy interventions must be carefully planned, requiring an understanding of the stakeholders to be consulted.

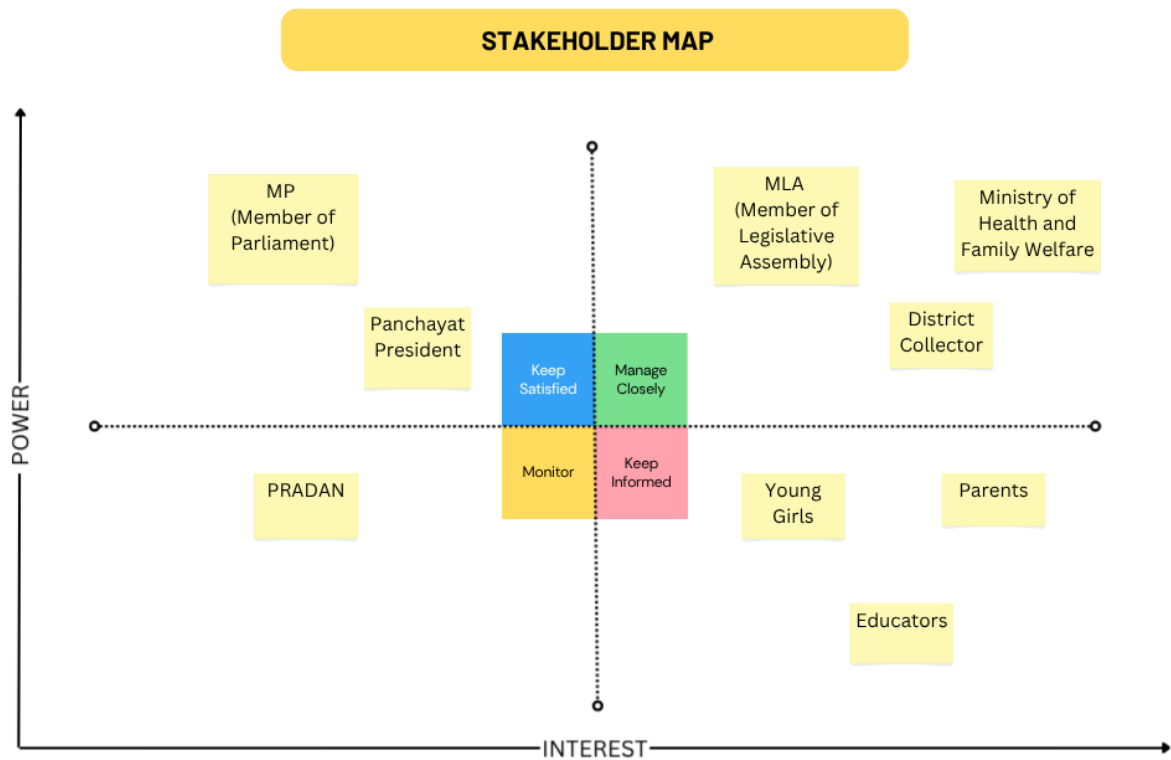


Fig:4

Policy Problem

Having considered the several themes and tensions inherent in the understanding of this practice, the younger girls are more likely to be influenced by any policy interventions and their perception of the practice as a burden will mean that they will be more receptive to any possibilities for change. So, the policy recommendations cater to the adolescent category in particular. The Muttutharai practice in Govindanallur village of Virudhunagar forces menstruating girls to isolate themselves, impacting their wellbeing. The girls grow up being exposed to negative social norms surrounding menstruation and lack access to accurate information. There is a need for urgent policy intervention to enable menstrual health awareness and address the stigma surrounding menstruation.

As per NFHS 5, 98% of women aged 15-24 use hygienic menstrual products reflecting the strides made by Tamil Nadu in ensuring Menstrual Hygiene Management (MHM). However, this focus on product-based solutions often fails to address the root cause of exclusion. As scholar Chris Bobel (2019) argues, the MHM movement can inadvertently prioritize 'technological fixes' that teach girls to manage and conceal their bodies, rather than dismantling the underlying social stigma that frames menstruation as impure. This critique is highly relevant in Govindanallur, where the wide availability of pads has clearly not meant an end to the deeply rooted stigma and misinformation evidenced by the Muttutharai practice. But MHM components such as accurate and timely knowledge and positive social norms remain to be adequately addressed. Inadequate knowledge and understanding of menstruation are of concern because these can be harmful to adolescents' mental and physical health (Sychareun et al. 2020). Providing pads and WASH facilities have been ensured but stigma and misinformation remain unaddressed. In Govindanallur village, availability of pads has not meant an end to stigma and misinformation as evidenced by the Muttutharai practice.

Policy Alternatives

The policy recommendations are as follows:

Solution 1: Legislative Prohibition of Harmful Menstrual Seclusion Practices

This can be done by introducing legal safeguards that discourage coercive or unsafe menstrual seclusion practices. This could include guidelines, awareness drives, and penalties for forced isolation—ensuring women are not denied access to basic amenities like toilets, water, or healthcare.

Solution 2: Introduce Menstrual Health Awareness sessions alongside Anemia Prevention sessions conducted by PRADAN (NGO) under the Aspirational Districts Programme

1. Efforts by PRADAN to spread awareness on anemia prevention had started under the ambit of the Aspirational Districts Programme. Given that a knowledge sharing network is already in place using a local educator, the menstrual health awareness component can be incorporated through the use of menstrual health booklets.
2. Since there is a demonstrated need for accurate information on the biology of menstruation and on MHM to dispel myths and misinformation (McCammon et al. 2020), the booklet written in Tamil should contain factual information alongside practical day-to-day ways of addressing menstruation related discomfort.
3. Once these sessions have a good uptake, it is also important to include young boys into such sessions so that the selective science knowledge of menstruation as bad blood coming out is replaced with accurate and scientific information about menstruation as a normal physiological process.

Solution 3: Add questions on Menstrual Hygiene Awareness Sessions to the NFHS

Currently, the National Family Health Survey (NFHS) only gathers data on whether hygienic menstrual products are being used by women. Adding a question on whether they have attended any Menstrual Hygiene Awareness sessions will aid in getting a clear sense of the extent to which stigma and lack of awareness is being unaddressed.

To evaluate the proposed policy interventions, a Multi-Criteria Analysis (MCA) framework is applied. This allows for a structured comparison across key dimensions such as political feasibility, social impact, cost effectiveness, operational feasibility, sustainability, and scalability. Each solution is assessed qualitatively based on existing literature, on-ground feasibility, and stakeholder considerations. This approach aligns with a broader call within the Menstrual Health and Hygiene (MHH) field for more rigorous assessment of interventions to build a stronger evidence base for policy and investment. As Sommer et al. (2020) argue, improved measurement is essential for governments and donors to "invest resources with confidence."

Table 1: Application of Multi-Criteria Analysis (MCA) Framework

Criteria	Solution 1: Legislative Prohibition of Harmful Menstrual Seclusion Practices	Solution 2: Menstrual Health Awareness via PRADAN	Solution 3: Add Questions to NFHS
Political Feasibility	Low	High	Medium
Social Impact	High	High	Low
Cost Effectiveness	Medium	High	Medium
Operational Feasibility	Low	High	Medium
Sustainability	Low	High	Medium
Scalability	Low	Medium	Medium

Policy Recommendation

Solution 2 — Menstrual Health Awareness via PRADAN — clearly emerges as the most suitable and context-sensitive option since it is:

1. Politically and operationally feasible alongside being cost effective because it adds to existing ways of knowledge sharing as part of the Aspirational Districts Programme.
2. Socially impactful as misinformation is quelled and a network gets built outside of the family that enables access to accurate information.
3. Sustainable over the long term as the funding for the NGO comes from CSR partners who contribute to the Aspirational Districts Programme.
4. Unlike legislative bans that may face resistance or exclusionary backlash, this approach fosters bottom-up change through education, dialogue, and trust-building.

Conclusion

The Muttutharai practice reflects how deeply embedded socio-religious norms can shape the lived realities for women, and often in ways that restrict autonomy and wellbeing under the guise of tradition. This study highlights the clear tension between lived experience and social expectation: a substantial majority (63.33%) find the practice burdensome; however, adherence remains nearly universal at 98%. This

compliance is driven by a deep-seated fear of divine wrath and intense community pressure. Crucially, this pressure is enforced along strict caste lines, making the practice an intersectional burden borne exclusively by Dalit women in the village. This seems to be passed down and enforced across generations in a process of socialization that sees young women who resist the practice eventually become its enforcers as they age.

Meaningful policy must actively confront the social norms and misinformation that reinforce menstrual seclusion. The generational divide presented through the composite narrative, where younger women express resistance while their elders enforce the tradition, provides a critical entry point for policy. By focusing on adolescents, who are most receptive to change, the solution to foster community reform through menstrual health awareness sessions, led by a trusted local actor like the NGO PRADAN would prove to be most effective. Rather than enforcing top-down bans that risk alienating the community, such an intervention uses awareness, education, and gradual norm shifts led by a trusted actor. It is important that such an intervention is rooted in empathy, evidence, and community dialogue so that the delicate balance between cultural respect and constitutional rights is ensured.

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EVALUATING INDIA'S HATE SPEECH LAWS: PROTECTING WOMEN ON SOCIAL MEDIA FROM IPC TO BNS

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Abstract

This paper evaluates the effectiveness of India's hate speech laws, especially with the transition from the Indian Penal Code (IPC) to the Bhartiya Nyaya Sanhita (BNS) 2023, in protecting women from online abuse. With a surge in the presence of women online, the essay examines constitutional provisions, statutory frameworks (such as the BNS and the IT Act), judicial rulings, and the challenges of enforcement. Despite the modernised penalties introduced by the BNS, gaps in the IT Act, inconsistent moderation by online platforms, and a lack of gender-specific measures limit the protection available for women. The increase in cybercrime during the Covid-19 pandemic highlights the vulnerability to women with multiple reports of harassment. With regards to this, the paper ultimately argues for a comprehensive legal and societal response to safeguard women's digital dignity.

Introduction

In today's digital world, social media has transformed into a public space for free expression, political discussions, networking and activism. The growth of social media has changed the way we communicate, providing women with unique opportunities to engage in public conversation, advocate for their rights and build supportive communities. However, this digital landscape has also become a breeding ground for widespread online abuse, including hate speech, cyberbullying and gender-based harassment, disproportionately affecting women, who continue to face misogynistic slurs, threats, and derogatory remarks, further aggravated by the anonymity and the virality of the platforms (Pathak and Kumar 247). The legal framework addressing hate speech in India had undergone significant changes with the replacement of the Indian Penal Code (IPC) of 1860 with the Bharatiya Nyaya Sanhita (BNS) of 2023, supported alongside by the Information Technology (IT) Act of 2000 and an array of constitutional provisions. This paper critically evaluates the effectiveness of India's hate speech laws in protecting women on social media, while focusing on the transition from IPC to BNS. Its thesis argues that despite the BNS's updated provisions, its effectiveness is curtailed by the outdated provisions in the IT Act, inconsistent enforcement and lack of gender-specific measures. As a result, women continue to remain vulnerable to gender-based harassment. The analysis examines the constitutional and statutory framework, judicial interpretations, enforcement challenges, and their impact on women. It draws upon scholarly articles, case studies and data from the recent COVID-19 pandemic, as the period of the pandemic witnessed a notable increase in online violence (Mishra 698).

To deepen the analysis of 'digital dignity' in the context of gendered hate speech, this paper adopts a feminist jurisprudence lens, drawing on Catharine MacKinnon's framework that views hate speech not as a neutral expression but as a form of subordination that perpetuates gender inequality and harms women's autonomy (MacKinnon 1987). This perspective highlights how online abuse erodes women's dignity in digital spaces, treating such speech as actionable discrimination rather than protected free expression. It underscores the need for laws to recognise the intersectional vulnerabilities of women, aligning with socio-legal critiques of inadequate protections in India's evolving framework.

Methodology

The paper employs a doctrinal legal study approach, focusing on the interpretation and analysis of primary sources such as statutes (e.g., the Indian Penal Code (IPC), Bharatiya Nyaya Sanhita (BNS), and Information Technology (IT) Act), judicial precedents from key cases, and secondary data, including scholarly articles and reports on cybercrimes against women. The analytical method involves a comparative

evaluation of legal provisions under the IPC and BNS, examining their evolution, applicability to gendered hate speech on social media, and gaps in enforcement. This is supplemented by socio-legal insights from recent studies to assess real-world impacts on women's digital safety.

Literature Review

Scholarly discourse highlights the growing challenge of online hate speech directed at women. The conflict between freedom of expression and the need to protect vulnerable groups is also emphasised. Maya Mirchandani argues that social media amplifies gender-based hate speech, intersecting with many communal and patriarchal anxieties. Pathak and Kumar highlight that women are disproportionately targeted because of their gender and social identities whilst pointing out that the Indian Penal Code and the Information Technology Act fail to provide victim-centric remedies necessary for addressing digital abuse. Aakriti Mishra's study conducted at the time of the COVID-19 pandemic reveals an increase in cybercrimes in 2020, with women experiencing severe forms of harassment such as sextortion and virtual auction. She critiques the criminal justice system for its technical and procedural inadequacies while noting that legal responses are lagging behind the scale of the abuse. Arjun George argues that the IPC and IT Act are not well equipped to address technology-driven crimes, with societal patriarchal norms normalising the abuse. The judiciary's cautious approach, followed in the *Shreya Singhal v Union of India* case, prioritises free speech but overlooks the psychological and social harm caused by online abuse (Board of Trustees v. State of Delhi 458). While the transition from the IPC to BNS introduces new provisions, scholars argue that without any gender-specific measures and robust enforcement, women will continue to be vulnerable to digital harassment.

Constitutional and Statutory Framework

The Indian Constitution guarantees the freedom of speech under Article 19(1)(a), but it is subject to reasonable restrictions given under Article 19(2) regarding public order, decency, morality and incitement to an offence (Constitution of India. Government of India, art. 19). Hate speech is covered under these provisions, especially to protect women from gendered abuse. The Indian Penal Code (IPC) includes provisions such as Section 153A, which penalises promoting enmity between groups based on religion, race and other distinctions (Indian Penal Code, 1860. Government of India, s. 153A). The applicability of the provisions to gendered hate speech, however, is limited. Section 295A targets acts that outrage religious feelings and this section can be relevant to women from specific communities (Indian Penal Code, s.295A), while Section 505 criminalises a statement that causes public mischief (Indian Penal Code,

s.505). This provision can be applied to the cases of online incitement against women. Section 507 deals with criminal intimidation through anonymous communication, while Section 509 covers a word or action that insults women's modesty (Indian Penal Code, s. 507 & 509). However, both these sections are inadequate for addressing cyber-specific abuses such as doxing or sextortion (Pathak and Kumar 249).

The Information Technology (IT) Act of 2000 supplements these provisions with specific sections such as Section 67 (regarding obscene material), Section 67A (dealing with sexually explicit content), and Section 66E (addressing privacy violation through unauthorised image capture) (Information Technology Act, 2000. Government of India, ss. 66–67). However, these measures are primarily reactive, mainly focusing on the removal of the content after the event happens, rather than prevention in the first place. The authorities also struggle with issues related to anonymity and the rapid spread of the content (Pathak and Kumar, 251).

Effective from July 1, 2024, the BNS replaces the IPC, introducing updated provisions to address hate speech and cybercrimes. Section 196 replaces IPC Section 153A, which penalises enmity based on religion, race and similar factors, imposing a sentence up to three years in prison (Bharatiya Nyaya Sanhita, 2023. Government of India, s.196). However, it excludes gender, restricting its application to gender-based hate speech. Section 299 replaces IPC Section 295A, which criminalises acts that outrage religious feelings, (Bharatiya Nyaya Sanhita, s.299) with similar limitations for women-specific cases. Section 353 replaces IPC Section 505, covering a statement that causes public mischief (Bharatiya Nyaya Sanhita, s.353). This section applies to online incitement but falls short in specifically targeting gender-based harassment. Section 351(1) replaces IPC Section 503 penalising criminal intimidation, including threats of death, serious injury or reputation harm made through electronic means, with a penalty of two years imprisonment (Bharatiya Nyaya Sanhita, s.351(1)). This section allows for the inclusion of the electronic means which were not provided in IPC. Section 351(3) deals with anonymous criminal intimidation, allowing for up to seven years in prison (Bharatiya Nyaya Sanhita, s. 351(3)). This provision specifically addresses anonymous online threats against women. Section 356 replaces IPC Section 499 and 500, which penalises acts that insult women's modesty, including digital gestures or verbal insults, with a sentence of up to 3 years (Bharatiya Nyaya Sanhita, s. 356). The IT Act remains the same, but the Information Technology (Intermediary Guidelines) Rules 2021 mandate the removal of content within 36 hours and also require traceability (Pathak and Kumar, 248).

While the BNS modernises penalties and also explicitly includes electronic means, it still lacks gender specific provisions for cybercrimes that affect women.

Additionally, high thresholds for the evidence, such as a requirement to prove intent, continue to limit the effectiveness of these provisions (George 9). Comparatively however, the BNS offers incremental improvements over the IPC by explicitly incorporating electronic means (e.g., in Section 351(1) for criminal intimidation, which expands beyond IPC Section 503's narrower focus on physical threats), potentially better addressing anonymous online harassment against women. Nevertheless, this modernisation falls short in evaluation: while BNS Section 356 enhances penalties for insulting women's modesty (up to three years, versus IPC Section 509's lighter sanctions), it fails to encompass emerging cyber threats that of doxing or sextortion, which disproportionately affect women on a greater scale (Mirutha 2024, b745; Nigam 2024, Existing Gaps in the Policies and Legislation). Unlike the IPC's reactive stance, the BNS could have suggestively integrated gender-specific clauses to align with feminist calls for recognising digital harms as extensions of systemic inequality, but its exclusions further perpetuate enforcement gaps (Balabantaray et al. 2023, 25; Nigam 2024, Calling for a Gender-Sensitive Law and Policy Framework).

Role of Intermediaries

Social media platforms also play an important role in moderating hate speech. Platforms such as Facebook and Twitter define hate speech as attacks on protected characteristics, including gender. However, the moderation practices of these platforms are inconsistent. Engagement-driven algorithms usually amplify provocative content, including gender-based abuse (Mirchandani 52), with automated tools often struggling to detect nuanced forms of harassment, such as shaming or stereotyping which could evade community standards (Mishra 701). The BNS does not directly address this intermediary liability and instead relies on the framework established by the IT Act. Many high-profile cases, such as *Sulli Deals*, where the photos of Muslim women were misused for a virtual auction, also highlight the failure of these platforms to act promptly; GitHub, the platform where the images are posted, removed the app only after significant public outrage. (Mishra 701). The safe harbour provision under Section 79 of the IT Act protects platforms from liability (Information Technology Act, s.79). further reducing their incentive for proactive moderation. While judicial directive, such as in the case of *Mrs X v Union of India* mandates rapid content removal and de-indexing (*Mrs X v Union of India* [14]), the compliance with this directive remains inconsistent as platforms cite technical limitations to evade liability (George 21).

The stricter penalties proposed in BNS may indirectly pressurise platforms to improve their moderation practices, but without any comprehensive reforms to the IT Act, accountability for the intermediaries remains inadequate. This situation leaves women blatantly exposed to the ongoing digital abuse.

Enforcement Challenges

The enforcement of hate speech laws under both the IPC and BNS faces significant challenges, especially for women seeking justice. Law enforcement agencies lack adequate training in cyber forensics, with only a small percentage of personnel equipped to handle the digital evidence. This situation is furthermore complicated by frequent staff transfers (Mishra, 704). The new provisions of BNS, such as Section 351(3), may require technical expertise as criminal intimidation increasingly intersects with online abuse and digitally transmitted threats. The expertise may include proficiency in cyber-forensics, digital evidence authentication under Section 65B of the Indian Evidence Act, and the ability to trace threats across encrypted platforms. Without such capabilities, law enforcement struggles to establish the evidentiary chain necessary for prosecution, especially in cases involving online abuse and transnational data flows. This was evident in the sluggish investigation into the *Sulli Deals*, with the investigation being hindered by complexities in the jurisdiction and a delay in cross-border data access under the Mutual Legal Assistance Treaty (MLAT) (Mishra, 703). Societal biases often discourage women from reporting abuse as well, with only less than 10% seeking legal recourse (Mishra, 705). The reasons for the underreporting can be due to victim blaming and shaming. This trend was further worsened during the COVID-19 pandemic when the resources were diverted from responding to gender-based violence. Data from the National Bureau of Economic Research (NBER) reveals a 184% increase in cybercrime complaints in the red zone areas during the lockdown in 2020 (Mishra, 700). This report highlights the strain on the enforcement mechanism. There are still many procedural gaps in the BNS, with the process of filing a First Information Report (FIR) still remaining daunting, especially against anonymous perpetrators. Judicial backlog also delays justice, keeping women more vulnerable to the ongoing harassment (Pathak and Kumar, 251). Although BNS enhances penalties such as a seven-year sentence for anonymous threats, the lack of trained personnel and streamlined process undermine the effectiveness of these provisions (George, 26). Initiatives like cyber helpdesks for women in Kolkata represent positive steps (Mishra, 701). However, these kinds of initiatives have a limited reach, highlighting the common systemic gaps in the enforcement mechanism.

Judicial Interpretation

Balancing Free Speech and Protection

The judiciary plays a significant role in interpreting the hate speech laws. However, its cautious approach often prioritises free speech over the robust protection of women. This approach undermines the effectiveness of the legal framework in addressing gender-based online abuse. In the case of *Shreya Singhal v Union of India*, the Supreme

Court struck down Section 66A of the IT Act due to its vagueness, holding that the provision placed an unconstitutional restriction on free speech (*Shreya Singhal v. Union of India* [119]). Before being struck down, Section 66A allowed authorities to take action against a wide range of harmful online behaviour, including threatening messages, persistent harassment, abusive language, and cyberstalking. Although the provision was criticised for being broad, in practice, it gave women a relatively direct and quick legal pathway to report online abuse and seek intervention. However, this ruling eliminates a key tool for prosecuting online abuse, further forcing women to rely on narrower provisions, such as IPC Section 509, which deals with the insult to modesty (George, 18.). With Section 66A removed, women now face a higher burden when seeking legal protection online, because existing provisions focus mainly on sexual harassment or require stronger evidence. As a result, many forms of repeated online intimidation, trolling or degrading speech fall through the cracks, limiting the ability of women to take early action against digital abuse. The alternative provisions are not very relevant to the digital context; while this ruling reinforced the constitutional protection under Article 19(1)(a), it fails to recognise the harm caused by gendered harassment. This reveals a gap in the judiciary's sensitivity to women's experiences online (Mirchandani, 59).

By evaluating judicial evolution, the BNS's provisions (e.g., Section 356 on modesty insults) build on IPC-era rulings like *State of Punjab v. Major Singh*, which tied modesty to women's inherent dignity, but introduce stricter penalties for digital acts. Yet, this shift is insufficient when compared: post-IPC cases like *Pravasi Bhalai Sangathan v. Union of India* reveal courts' reluctance to broaden incitement thresholds, excluding subtle online abuses; the BNS does not rectify this, maintaining high evidentiary bars that hinder prosecutions in gendered contexts (Mirutha 2024, b746; Nigam 2024, Existing Gaps in the Policies and Legislation). A more evaluative lens shows that while BNS Section 351(3) targets anonymous threats with up to seven years' imprisonment (an upgrade from IPC Section 507), judicial caution in cases like *Amish Devgan v. Union of India* prioritises free speech over individual harm, limiting the new code's potential to protect women's digital dignity amid rising cybercrimes (Balabantaray et al. 2023, 26; Nigam 2024, The Legal Matrix Regulating Cybercrimes Against Women in India)

Proactive Judicial Interventions

The recent judicial interventions show a proactive approach to addressing online abuse. It offers hope while also highlighting certain limitations. In the case of *Mrs X v Union of India*, the Delhi High Court mandates the rapid removal and de-indexing of defamatory content targeting women (*Mrs. X v. Union of India* para. 14). This ruling set a precedent for swift action under provisions such as Section 356 of BNS, which

penalises digital insult to modesty. The court emphasised the irreparable damage caused by the online abuse and also directed the platform to act within hours. However, compliance has been inconsistent due to technical challenges faced in removing the content (George, 21). In another case of *Subhranshu Rout v State of Odisha*, the Orissa High Court recognised the right to be forgotten (*Subhranshu Rout v. State of Odisha* para. 9). This allows women to seek the removal of online content that perpetuates their victimisation. This principle is also relevant to BNS Section 351(2), which protects against reputational harm. The ruling acknowledges the long-term impact of online abuse, especially on women. However, the application of this right is limited due to the absence of any explicit statutory support on the BNS. Furthermore, the Calcutta High Court, in a judgement, issued a directive for training police officers in handling digital evidence (*Subhendu Nath v. State of West Bengal* para. 21). This step was taken to address a critical enforcement gap for the provisions like Section 351(3) in BNS. The provision targets anonymous threats (*Bharatiya Nyaya Sanhita*, s.351(3)). This directive was aimed at responding to the delays in the investigation related to cybercrime, but the implementation of the same remains uneven due to the shortage of trained personnel available nationwide.

Limitations to Judicial Approach

The efforts by the judiciary to balance free speech and protection of women often fall short because of procedural rigour and the absence of gender specific provisions in the BNS. In the case of *Amish Devgan v Union of India*, the Supreme Court clarified that hate speech must be evaluated in the very context (*Amish Devgan v. Union of India* [48]). However, its focus on public order over individual harm limits its effectiveness in addressing gendered abuse. This type of gender-based abuse targets women on a personal level rather than inciting widespread unrest (Mirchandani, 57). Similarly, in *Anuradha Bhasin v Union of India*, (*Anuradha Bhasin v. Union of India* [33]) the court focused on the need for proportionality in restricting online content, but failed to address the specific vulnerability faced by women dealing with targeted harassment. This oversight of the court creates a gap in the judicial guidance for effectively enforcing the relevant legal standards for women facing digital abuse (George, 19). The lack of gender specific clauses in the legal framework also restricts the ability of the judiciary to formulate any remedies for cybercrime against women. While this kind of cybercrime requires a more nuanced kind of legal interpretation, the preference of the judiciary for criminal sanctions over civil remedies, such as injunctions or damages, leaves women without immediate relief. This challenge is quite evident in cases where the victim demands content removal but has to encounter prolonged legal battles instead (Pathak and Kumar, 251). While ruling in cases like *Mrs X* and *Subhranshu Rout* present a willingness on the part of the courts to adapt, inconsistent enforcement and a lack of

any legislative support undermine their effectiveness. Due to these reasons, women are left with very limited options to combat digital abuse.

Impact on Women

Key insights from this analysis reveal persistent shortcomings in India's hate speech laws: the absence of gender-specific clauses in both IPC and BNS (e.g., exclusions in Sections 196 and 353) leave women vulnerable to online abuses like trolling and deepfakes; weak enforcement, compounded by high evidentiary thresholds and platform negligence, undermines judicial efforts; and the overemphasis on free speech in rulings like *Shreya Singhal v. Union of India* exacerbates these gaps, failing to address intersectional harms. (e.g., for Muslim or Dalit women in cases like *Sulli Deals*) (Mirutha 2024, b747; Balabantaray et al. 2023, 27; Nigam 2024, *Cyberviolence Against Women*) Such ineffectiveness has profound and multifaceted consequences for women, significantly undermining their safety, dignity and participation in digital spaces. About 58% of women report experiencing online harassment like misogynist slurs, threats and derogatory comments (Mishra, 700), resulting in severe psychological trauma, anxiety and depression. Data from the National Crime Records Bureau (NCRB) reveals the scale of the issue, with Maharashtra alone reporting about 1126 cases of cyber stalking and bullying against women over a period of two years. (Mishra, 702) High-profile cases like that of the *Sulli Deals*, in which the photos of Muslim women were issued for virtual auctions, illustrate the intersection of gender and community-based harassment, over which legal responses are often slow due to lengthy investigations and jurisdictional challenges (Mishra, 703). These incidents not only target the identities of the women but also attempt to silence their voices, especially those who speak out on social or political issues. The psychological trauma is further exacerbated by the prevailing societal patriarchy. In the case of *Joseph Shine v Union of India*, the court criticised the societal and legal structures that perpetuate gender inequality. Due to these structures, abuse is normalised and women are discouraged from seeking justice. (George, 22) Many women have to do self-censorship by deleting their social media accounts or reducing their online activity to avoid any kind of harassment (Mishra, 698). Such restrictions limit their access to education, employment opportunities, networking, and activism. Ultimately, digital harassment undermines the democratic potential of social media as a platform for women's empowerment and their expression.

The COVID-19 pandemic further worsened these challenges, resulting in a surge in online abuse during the lockdown when women were increasingly relying on digital platforms for work, education and social interaction. There were also instances where women seeking medical or financial help online were met with lewd messages and

harassment (Mishra, 698). This kind of behaviour further discourages their engagement in digital spaces. The BNS has introduced stricter penalties, including seven years' imprisonment for anonymous threats under Section 351(3). However, this provision may deter only a few offenders because its effectiveness is limited by the lack of gender specific provisions addressing cybercrimes such as doxing, sextortion, or virtual auction (George, 9). This poses unique risks for women. For example, doxing reveals women's personal information, which can even lead to real-world threats to them. Similarly, sextortion takes advantage of intimate images of the victims to blackmail them, leading to significant emotional distress and damage to their reputation. The lack of specific legal protection results in making women more vulnerable to these emerging forms of abuse. Furthermore, the BNS's requirement for high evidentiary standards, such as proving intent, further complicates the process of convicting the offenders. The anonymous perpetrators benefit from this particularly because of the anonymity provided by the online platforms. Additionally, the absence of any immediate civil remedy, such as monetary damages or injunctive relief, worsens this situation (Pathak and Kumar, 251). The women are left without any kind of immediate relief or compensation for the harm they have endured.

The societal impact of this kind of digital abuse goes beyond the individual victim, and it reinforces gender stereotypes while perpetuating a culture of silence. Women from marginalised communities, such as Dalit and Muslim women, face significant abuse while experiencing hate speech that targets both their gender and their caste or religious identities. This is evident in cases like that of Sulli Deals. The inefficiency of hate speech laws to address these intersections leaves these women more vulnerable than other women. Although the provisions of BNS are broader than those of IPC, they do not adequately address the numerous ways in which gender abuse operates in digital space, particularly with the advent of coordinated trolling campaigns or deepfake technologies in the present-day scenario. (George, 13) In addition, the lack of any proactive enforcement and campaign for societal awareness implicitly upholds that women would continue to face an unsafe digital environment, leading to a negative impact on their mental health and social participation. The rather failure of the legal system also undermines the country's commitment to gender equality under the Sustainable Development Goals 2030 and the constitutional guarantee of dignity given under Article 21, while effectively denying women equal access to the digital sphere.

Conclusion

The shift from the IPC to BNS marks a significant attempt to modernise India's hate speech laws. The BNS includes provisions, like Section 351(3) and 356, that address anonymous threats and digital insults targeting women's modesty. But their effectiveness in protecting women on social media are, in fact, limited by several

factors. The significantly outdated IT Act fails to ensure strong accountability for the intermediaries involved in social media, which allows them to prioritise their user engagement over women's safety. Inconsistent enforcement due to a lack of cyber forensic training and procedural shortcomings hinders timely justice. A major shortcoming of BNS is its absence of gender specific provisions to address cybercrimes, which disproportionately affect women. While the directives given by the judiciary in *Mrs X v Union of India* and *Subhranshu Rout v Union of India* emphasise the necessity of a proactive measure, cases like the *Sulli Deals* highlight the gaps in enforcement and platform accountability. The significant impact on women, such as self-censorship, psychological trauma and limited digital participation, highlights the urgent need to tackle these issues. Without much comprehensive reform to address legislative, enforcement and social gaps, the hate speech laws of India will continue to be inadequate and make women more vulnerable to gender-based harassment, thereby undermining the right of equality and dignity in the digital age for the women of India.

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UNCOVERING THE AMBIKA OF URVAHI

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Abstract

“A sculpture is not merely a piece of art- it is a mirror of the society, a reflection of desired forms of beauty, a yardstick for moral standards, a symbol of entrenched notions, a visualisation of cultural traditions, a muse for creative literature, a tool for mass appeal and popularisation, an instrument for institutionalising the ‘unwritten norms,’ and a vehicle for registering dissent and shattering the conventional societal images.”

The study focuses on the Yakshi carvings at the Urvahi Valley of the Gwalior Fort during the 7th century and in the 15th century, primarily under the Tomar king Dungar Singh. Placed under majestic Jina statues, these sandstone figurines, though minuscule in size, stand tall as the epitome of maternal affection (vatsalya). The author, through field study and a reading of the texts, has applied a gendered prism to view the relief within the patriarchal notions of an ‘ideal woman’. These dogmatic beliefs, on the one hand, glorify piety and servility, and on the other, they act as an impediment to the elevation of a woman’s spiritual status. Therefore, such identities need to be reclaimed and women, through the example of Ambika, be understood by way of their agency, as a counterweight to masculine authority and as repositories of valour and virtue.

Introduction

Women's spiritual being continues to be time and again questioned and reconceived, their depictions of divinity often juxtaposed with limitations on their autonomy. This inherent paradox needs to be reapproached, keeping in mind both the conventional and the unconventional conceptions of female deities. This paper, using Ambika as a prototype, aims to re-examine traditional notions of femininity and redefine the concept of 'true womanhood'. By employing an iconopraxical analysis of the Urvahi rock-cut architecture at the Gwalior fort, the research highlights how the devotional sculpture reflects society. The ultimate objective is to explore the myriad facets of Ambika, an embodiment of maternal love, a guardian deity, a fierce and unyielding woman, and a personification of unwavering faith. The complex dynamics of women's identities thus lie at the undercurrent of this study.

The research attempts to place this multifaceted role of women in a prism of societal expectations and moral judgements. It attempts to place the history of the subalterns in a broader narrative that depicts the nature of the society and reconstructs inherent ideals. At the same time, it navigates through the 'greater culture' (the Tirthankaras) and the 'lesser culture' (The Yaksha Cult), highlighting two disparate yet parallel strands in the devotional history.

Literature Review

The prominence of the Yakshi has attracted varied scholarly literature from art historians to academics in the field of gender studies. This paper has considered the various Jain texts that illuminate Ambika's iconography and ritual practices associated with her. Alexander Cunningham (1871) and James Fergusson (1876) were among the first to explore the sculptures on the Gwalior Fort. The Archaeological Survey of India's reports and the Gwalior Gazetteer (1937–38) describe the figurines at Urvahi. Texts of B. C. Bhattacharya (1939), U. P. Shah (1987), M. N. P. Tiwari (1987), and John Cort (2010) have thrown light on the symbolic dimensions of Jain iconography. Historians Uma Chakravarti (2006) and Ellen Gough (2021) have lent a gendered lens to the interpretations. Recently, a Jiwaji University (Gwalior) researcher wrote a PhD thesis on the Ambika of Gwalior (2023). Further, the Detroit Institute of Arts conducted a descriptive analysis on 'Jinas with Family and Goddess Ambika' (2024).

Situating Gwalior in a Geographical and Historical Context

Gwalior¹, situated in the heart of India, Madhya Pradesh, is an important juncture between the north-south and the east-west routes², standing today as one of the most

important cities in the state. The Gwalior-Chambal region has historically been referred to as *Gopa*, *Gopadri*, *Gopacala*, and *Gwalehar*. It is one of the ten divisions of Madhya Pradesh, consisting of eight districts with the divisional headquarters at Gwalior. The Chambal River, the lifeline of the region, finds a mention in Panini's *Ashtadhyayi*.³ Travellers like Ibn Battuta laud its mineral wealth and especially praise the sheen of the Gwalior sandstone.⁴ This sets Ambika, carved in this very sandstone, within the rich historical context of the city.

Jainism revolves around the five principles of *Ahimsa* (non-violence), *Satya* (truthfulness), *Asteya* (non-stealing), *Brahmacharya* (celibacy), and *Aparigraha* (non-possessiveness). Its popularity can be traced to Mahavira, the last Tirthankara, in the 6th century BCE. According to the Jain belief, he was preceded by 23 Tirthankaras, beginning from Rishabdeva/Adinath. The Tirthankaras are the ones who guide the masses to the *tirths* (pilgrimage) and initiate them towards *nirvana* (liberation). Jainism has two major sects – the Digambaras (skyclad) and the Svetambaras (white-clad).

Jain imagery can be understood over the centuries. Initially formless, the first Tirthankara statue appears in the Mauryan period in Lohanipura, near Patna. The Hathigumpha inscription of Kharavela suggests that Jainism spread as far as Odisha. During the Kushanas, Jain sculpture flourished, especially in centres like Vidisha and Mathura. The Gupta period was the golden period of Jain sculpture, where a decrease in Tirthankara statues is discerned in comparison to the expansion of the Jain pantheon at large. Later, in the Sultanate and Mughal periods, Jain art continued to find patrons, as in the case of Gwalior.

The Yaksha and Yakshini need to be understood within this monastic framework. They first appear in the post-Gupta period. While some scholars trace the emergence of the idea of Yaksha-Yakshini to Brahmanical influence, others call it a pragmatic move to appeal to the masses, for whom the perils of the material world were more intriguing than the puritanical world. The Yaksha and Yakshini, with their elaborate ornamentation, protruding belly, and voluptuous torso, therefore, appear in sharp contrast to the nude and austere Tirthankara images.

Jainism became popular in Madhya Pradesh during the Mauryan period.⁵ During the Kushana and the Gupta periods, Jainism thrived in Mathura and Vidisha, and the influence from here reached Gwalior due to its geographical proximity. The earliest sculptural evidence here can be seen from the 6th century in the form of two images of Rishabhdeva. During the 8th century, the Gurjar Pratiharas (8th century-10th century CE), due to their secular leanings, encouraged Jain art. Nagabhata II gave state patronage to Jainism, and its influence can most prominently be observed in Panihar and Padawali near Gwalior.



Fig 1: *Ambika at Parihar*

Their successors, the Kachchhapaghata dynasty (950–1150 CE), had Digambar Jains holding prominent positions in their court.⁶ A point to emphasise here is that it is the Digambar art, and not Svetambara, that predominates the Jain landscape here. Even today, Svetambara Jains number just about 700 in comparison to the far greater Digambar population.⁵

Jain statues continued to be commissioned during the 12th–13th centuries, even at the onset of Islam in the subcontinent. By the end of the 14th century, with the establishment of the Tomar dynasty, Jainism once again received state patronage. They had many Jain ministers in their council and encouraged prosperous Jain merchants to boost commerce in their state. Local guilds of Jains had become influential, and inscriptions mention individual traders making donations for building sculptures.⁷ As a result, several Jain texts mention Gwalior as a major pilgrimage centre.⁸

The most revered Jain sculptures can be seen in the vicinity of the Gwalior Fort. These were erected over subsequent periods under the various dynasties. The key rock-cut architecture along the fort is in five clusters—Gopachal (South-East), Trishala giri (South-West), Urvahi (North), Neminathgiri (North-West), and Nemgiri (North-East). This paper primarily focuses on the Urvahi group of sculptures, built largely under the Tomar king Dungar Singh during the 15th century.



Fig 2: *The Siddhanchal Caves, Urvahi Valley*

The Concept of Yaksha and Yakshini in Jainism

The first mention of Yakshas and Yakshinis is in the Jinabhadragani Shrāmana. The Harivamsha Purana (783 AD) begins to refer to them as '*Upasaka*' or '*Sasanadevatas*'. Traditional texts like the Purva Purana, the Uttara Purana, and the Chandraya Purana do not mention them. It is the later scriptures, like the Pratishtha texts, that have a notable Yaksha-Yakshini presence. The Trishasti Shalaka Purusha and Abhidhan Chintamani of Hemchandra, and the Pratishtha Saroddhara of Vasunandi, most prominently mention Yaksha and Yakshini. These are basically semi-divine beings who function as the guardian deities of the Tirthankaras, with each one of them having their own pair of Yakshas and Yakshinis. The Yaksha is the male devotee of the Tirthankara, while the Yakshinis are the leaders of women devotees and some of them are also referred to as '*Vidya Devis*'. According to belief, Indra appoints them to serve as attendants to each Tirthankara, with the Yakshi on the left and Yaksha on the right. They are known differently as *Yaksha* and *Yakshini/Yakshi* in Sanskrit; *Yakha* and *Yakhini/Yakhi* in Pali; *Jakha* and *Jakhini* in Prakrit; and *Yakha* and *Yakhini* in Sinhalese.

The emergence of the Yaksha cult within Jainism is primarily attributed to the rising affluence of the merchants. Since the Yakshas came to be regarded as presiding spirits over wealth, they appealed to the masses. The first art depiction of a Yaksha-Yakshi pair dates to the 6th century CE.

However, it was during the 10th–15th centuries that they flourished in Jain art. Their popularity sometimes reached the extent that independent images were erected

for them. Special emphasis was given to their aesthetic enhancement. B.C. Bhattacharya, citing the *Shilpa* or art manuals, illustrates its significance by stating that, “Beauty had to be emphasised to imbibe the symbolism. Indian art, therefore, had to be a mixture of symbolism and a beautiful art form. An ugly figure could never gratify a devotee's mind and his thirst for the infinite through a visible form. Hence, mystical symbols are represented with beauty, exquisite in quality and impressive in form.” Thus, the Yaksha and Yakshini, in a pragmatic move, came to be visualised to make an austere religion approachable and attractive to people from all walks of life.

The Yaksha and Yakshini existed in popular belief and in the literary tradition of Brahmanism way before they were incorporated into Jainism and Buddhism. In Hinduism, they are seen as patrons of the forests. The Buddhist texts, however, give more importance to Yakshinis than the Yakshas, as reflected in stupas at places like Bharhut and Sanchi.⁹

Within Jainism, initially in the 6th–9th century CE, Tirthankaras like Rishabhath, Santinath, Neminath, Parsvanath, Mahavira, etc., were accompanied by a single Yaksha-Yakshi pair. In fact, the earliest Yaksha-Yakshi pair in Jain sculpture were indeed that of Sarvanubhuti and Ambika. The depiction of the pair was, however, restricted to western India, as few have been found in Bengal, Odisha, and Bihar. By the end of the 9th century CE, one pair of Yaksha and Yakshi came to be identified with each Tirthankara. The prominent Yakshas were Dharanendra (Yaksha of Padmavati) and Gomukha (Yaksha of Cakresvari; depicted with Rishabhath). Between the 10th and 13th centuries CE, some like Padmavati, Jvalamalini, and Ambika became powerful Yakshis around whom individual cults developed.

While the iconography of Ambika shall be revealed in the subsequent paragraphs, it is imperative to discuss the other prominent Yakshinis for a comparative study. Padmavati, the Yakshi of Parsvanatha, the 23rd Tirthankara, is represented as riding on a snake and cock, and holding a lotus, noose, fruit, and goad. Like Ambika, she is visualised with several arms. The four-handed image holds a goad, rosary, and two lotuses. The six-handed type has a nose, sword, crescent, club, and a staff. The eight-handed figure has a noose and other attributes. The twenty-four-handed relief holds a conch, sword, crescent, lotus, bow, spear, and noose. The legend of Padmavati associates her with Patala. Jvalamalini, the Yakshi of Chandraprabhu, the eighth Tirthankara, rides a cat and is adorned with a sword, dub, spear, and axe. In the Digambara tradition, she has a buffalo symbolising her connection with her consort Vijaya, who is synonymous with Yama, the rider of a buffalo. An eight-armed figure of this Yakshini was identified by B.C. Bhattacharya in a cave under the Eastern roof of the Gwalior Fort. A significant point to consider here is that, unlike Ambika, who is visualised with her maternal attributes, these other Yakshinis are depicted in a rather

fierce form. These features, therefore, also emphasise the unique place of Ambika within Jainism.

S. no.	Tirthankaras	Congizance	Yaksha	Yakshini
1	Rishabha	Vrsa	Gomukha	cakresvari
2	Ajithnath	Gaja	Mahayaksa	Ajitabala
3	Sambhavnath	Asva	Trimukha	Duritari
4	Abhinandannath	Kapi	Yakesavara	Kalika
5	Sumatinath	Kraunca	Tumburu	Mahakali
6	Padamprabhu	Raktabija	Kusuma	Syama
7	Suparshva	Svastika	Matanga	Santa/ santi
8	Chandraprabhu	Sasi	Vijaya	Bhrkuti
9	Suvidhinath (Pushpadanath)	Makara	Jaya	Sutrika
10	Sheetalnath	Srivatsa	Brahma	Asoka
11	Shreyamshnath	Gandaka	Yakset	Manavi
12	Vasupujya	Mahisa	Kumara	Candi
13	Vimalnath	Sukara	Sanmukha	Vidita
14	Anathanath	Syena	Patala	Ankusi
15	Dharmnath	Vajra	Kinnara	Kandarpi
16	Shantinath	Mrga	Garuda	Nirvani
17	Kunthunath	Chhaga	Gandharva	Bala
18	Arnath	Nandyavarta	Yakset	Dharini
19	Mallinath	Ghata	Kubera	Dharanpriya
20	Munisuvrata	Kurma	Varuna	Nadarakta or Naradatta
21	Suvratnatha	Nilotpala	Bhrkuti	Gandharva
22	Aristhnemi (Neminath)	Sankha	Gomedha	Ambika
23	Parshvanath	Phani	Parsva	Padmavati
24	Mahavira	Simha	Matanga	Siddhayika

Table 1: *The various Tirthankaras with their respective Yaksha-Yakshi.*

Source: Pathak, Smriti, and S. K. Dwivedi. "Some Sculptures of Yakshi Ambika from Gwalior Region", *ICON: Journal of Archaeology and Culture*, 2021

Ambika Yakshi

Ambika, literally meaning 'mother', is known variously as Amba, Ambalika, Ambika, Ambali, Ambi, Chamudi, Amra, Kusmandi, etc. She is the Yakshi of the 22nd Tirthankara, Neminath. Neminath, Rishabhath, and Mahavira are the only three Tirthankaras who attained *nirvana* in *padmasana*. Neminath, also known as Aristanemi, is also believed to be the cousin of the Hindu god Krishna. Gomedha/Sarvanubhuti is her Yaksha with three faces, six arms, and the vehicle of a man. While the Svetambara tradition depicts him with a disc, mongoose, axe, citrus, spear, and trident, the Digambaras show him with an axe, hammer, staff, fruit, and vajra. He is believed to be a form of Kubera, as he is called Naravahan, another name for the Hindu deity.

The Svetambara tradition recounts the figure of a woman named Agnila. While her husband Soma and mother-in-law were not at home, she gave the food cooked for the Brahmanas to a starving Jain monk. Agitated by this, she was disowned along with her sons and took refuge under a mango tree. Seeing her righteousness, the demigods converted the tree into a *kalpavrisha* and filled the dry tank with water. Startled by her

divine qualities, Soma was filled with remorse and ran to seek her forgiveness. Frightened at this sight, Ambika jumped into the water. As a result of her meritorious conduct, she was reborn as Neminath's Yakshi, Ambika, and her two sons were also initiated by him. Her husband became her vehicle, the lion.¹⁰

The story underscores the contestation between the Brahmanas and the Jains. More importantly, it emphasises Ambika's virtues as a devout wife and a pious woman, ideas that came to be prized in the Jain archetype of a perfect woman. Also, her husband's inception as her vehicle and his seeking her forgiveness highlight the elevated status of a respected woman. Even the Jain idea of *Micchami Dukkadam*, which means seeking forgiveness from all, includes the idea of a man asking for the forgiveness of the woman of the house. Yet again, Ambika is admired above all as the paragon of motherly affection. Notably, she is accompanied by her two sons and no daughter. Thus, no matter the standing a woman receives in a society under her own merit, she is viewed primarily in her role as the birth-giver of a male child.

Textual References to Ambika

The earliest reference to Ambika in the textual tradition can be seen in the commentary *Viśeṣāvaśyaka Bhāṣya* (585 CE). As centuries passed, her persona gained depth in scriptures like the *Aparājitaṭṭhā* and *Rūpamaṇḍana*. The Tantric period saw an extensive outpouring of literature, such as *Ambika-Kalpa*, *Ambika-Tāḍaṅka*, *Ambikatāṭaṅka*, *Ambika-Stuti*, *Ambika-Devi-Stuti*, and *Bhairava-Padmāvatī-Kalpa*. Later, in the 12th–13th century, Bhuvanadeva compiled the *Aparājitaṭṭhā*, a lyrical tribute to Ambika. *Ambika-Stavana*, a hymn to Ambika penned by Vastupala, minister of the Chalukyas, was added to the repository of texts in the 13th century. The *Ambika-Devi-Kalpa* of Acharya Jinaprabha Suri, produced in the 14th century, contributed to this growing corpus, solidifying Ambika's position as an eminent deity.

Hindu and Buddhist Influence

Scholars are divided on the influence of Hinduism on the origin of Ambika in Jainism. Amba has been associated as a common epithet of Durga, Parvati, the sister of Rudra, and even one of Skanda's mothers (the *Krittikas*). J. N. Banerjee calls Ambika the Jain opposite of Durga, surrounded by her own mythology. Kalipada Mitra makes the connection between Kusmandi and Durga and calls Ambika the Hindu Amba. S. K. Jain argues that the idea is borrowed from *Simhavahini Durga*.

Other scholars like T. N. Gopinath assert that Jain Yakshis are different from Hindu goddesses. They point out that the fertility cult was first adopted by Jains in the form of Yakshi Bahu-Putrika (the one with many children), who by the 6th century became Yakshi Ambika. They disregard any similarity with Durga. Interestingly, Debala Mitra underscores a close iconographical resemblance with the Buddhist Hariti, calling

Ambika an 'amalgamation of different ideas.' Hariti, a devourer of children, evolved as their protector. She is represented with a child on her lap and a pomegranate in one hand as the quintessence of procreativity. However, whether or not influenced by other traditions, Ambika has certainly evolved her distinctive features.

The Basic Tenets of the Iconography of Ambika

The fundamental attributes of Ambika's iconography can be traced to her earliest representation in the 6th century from Akota near Baroda. Her iconography typically features a child, mostly Priyankara, the younger son, sitting on her left lap and Subhankara, the elder son, standing on the right beside her; a mango branch in her hand (*amralumbi*) or a mango canopy above her. Mango (*Mangifera indica*) is one of the most sacred trees in Jainism, along with the acacia (*Vachellia nilotica*), bel (*Aegle marmelos*), bodhi tree or pipal (*Ficus religiosa*), and other figs (*Ficus spp.*), kadam (*Neolamarckia cadamba*), tamarind (*Tamarindus indica*), and teak (*Tectona grandis*).¹¹ It is the personification of new life and is associated with various spiritual events in the texts. It appears in dreams and acts as an aid in satiating hunger.

These are, therefore, essential elements reflecting Ambika as an embodiment of fecundity and plentitude. *Matulinga* (citron fruit) is another symbol of fertility, key to her role in procreation. Her *vahana* is the lion. As the symbol of Mahavira, it is an embodiment of fearlessness (*Abhaya*). Thus, here, it reflects Ambika as a resolute woman exemplifying maternal power and strength. However, she is often seen seated on the lotus as well.

All these defining motifs, along with her elaborate attire and jewellery, emphasise her role as the mother and protector of children. Between the 6th–9th centuries, her two-armed figures began to appear. The earliest reference to her iconographic form can be traced to the Caturvimsatika. From the 10th century, she came to be visualised with four arms, as in texts like *Nirvana Kalika*.

During the 10th–13th centuries, there were several additions to her attributes, which saw her rank rising and sometimes equaling that of the Jinas. The inclusion of the goad (*ankusha*), noose (*pasha*), sword, and disc projecting Ambika's role as the destroyer of evil spirits is attributed to the influence of the Shakti cult. From the 13th century onwards, Ambika came to be associated with terrific tantric forms and given names like Shankra, Chandrika, and Aghoda. Prominent texts, such as Ambika Tadanka and Ambika Stuti depicted her with a bow and arrow as well. U. P. Shah mentions an eight-armed Ambika in *dhyana mudra* at this time. Eventual popularity had led to the evolution of independent cults around the Yakshi, and she came to be visualised in majestic forms. However, her rank was always restricted by her primary role as a divine mother, which would conveniently align with the patriarchal notions of womanhood.

The conception of Ambika differs between the two sects. Within the Digambar tradition, she is visualised with two hands, a lion, mangoes, and a child. In the Svetambar tradition, on the other hand, she is often depicted with four hands and a noose and goad, in addition to the basic Digambar features. Differences can also be seen in different geographical regions. In the South, she has a dark blue complexion in contrast to the golden hue in the North. Further, mangoes didn't find much support in the South, where she is mostly depicted holding a sword and disc in hand. Also, both children are shown resting on her lap in the South. However, whatever the differences may be, she is universally visualised as a metaphor of maternal love.

Ambika in Gwalior

Ambika is one of the most prominent Yakshis in the Gwalior-Chambal regions. While her relief can be found in other groups, this paper solely focuses on the Ambika of the Urvahi valley. Urvahi stands as the entrance to the majestic Gwalior Fort. James Fergusson, in his *History of Indian and Eastern Architecture*, first published in 1876, gives an apt description:

“The fortress stands on an isolated flat-topped hill about 300 feet high, 1½ miles long north to south, and 600 to 2,800 feet wide east to west. There are now two approach roads to climb the rock (although formerly there were some more) — one through the Gwalior Gate on the east and the other through the Urvahi Gate on the west.”

On the left-hand side of this valley, at the top, is the majestic Jain rock-cut architecture. They are known as the Siddhanchal Caves. These mainly house the Tirthankaras, in both standing and sitting postures. The most revered among these is the 57-feet-tall statue of Adinath, the 1st Tirthankara. Placed here in small niches under the Tirthankaras are the images of Ambika. She is seen at Urvahi at two places prominently, one at the base in the Trishala Mata Atishay Kshetra, and the other at the Siddhanchal Caves about 200 metres from the Urvahi Gate. Carved in the locally available sandstone, these figures have become the defining features of the valley.

Ambika in the Upper Urvahi Valley (15th Century CE)

The figures of the Siddhanchal Caves in the Upper Urvahi Valley portray Yakshi Ambika seated in *lalitasana* (relaxed pose) with her face exuding a serene expression. A child sits on her left lap. Here she is typically two-armed. Her left hand supports the child in the *vatsalya mudra*, stressing motherly affection. The right hand holds *matulinga* (citron fruit). She is adorned with intricate ornamentation – *kireet* (the elongated crown), *kundal* (earrings), a *har*, and a *mekhla* (waistband). Interestingly, the design of the necklace in each of these images is different, adding to its aesthetic appeal. A Yaksha accompanies her, and they are enshrined in a tiny rectangular niche placed beneath the feet of various Tirthankaras, including Mahavira and Neminath in

padmasana (sitting pose), and Rishabh Nath and Parsvanath in *kayotsarga* (standing meditative pose).



Fig 3: (Refer to the description above)



Fig 4: This Yakshi holds no object in the hand



Fig 5: The child in the figure rests on the right lap, with both hands of Ambika supporting him



Fig 6: (See the prev. detailed discussion)



Fig 7: In contrast to the other figures, the child here has his right hand raised in the air, perhaps reflecting the innocence of a boy reaching out for his mother's affection

Ambika in the Trishala Mata Atishay Kshetra at the Urvahi Gate (7th Century CE)

The relief depicted here is one of the most exquisitely carved Ambika Yakshi in the Chambal region, positioned at the entrance of the road to the Urvahi Gate. Her figure is of considerable size, located next to Trishala Mata's relief, which lends the place its name. Ambika sits on a lion mount, turned to the right and facing the viewer. Priyankara rests on her left lap, and Shubhankar stands to her right. She is surmounted by a mango canopy with the Tirthankar's small image placed in between. In her left hand, she holds a branch of the mango tree, while her right caresses the child. Her ornate jewellery includes: *kireet* (headgear), *patra-kundalas* (earrings), *bhujband* (bangles on the forearms), *stanasutra* (hara at breast), *katibandh* (waistband), and *paajeb* (anklets). Further, her curvaceous form, almond-shaped eyes, arched eyebrows, sharp nose, and rounded chin project her as a manifestation of the procreative capacity. In the foreground, she is accompanied by her Yaksha, who is adorned with fine ornaments and has a prominent belly, symbolising profusion.



Fig 8: Savarnubhuti



Fig 9: Ambika

A comparative look at this can be drawn from the UNESCO World Heritage Site of the Ellora Caves. While both are inscribed in the intricate rock-cut architecture, in Maharashtra and in Madhya Pradesh, these show considerable differences in their iconography. Out of the 34 caves at Ellora, the last four are dedicated to the Digambar Jain tradition, carved between the 9th and 12th centuries. Here, Ambika develops as an independent cult figure, specifically attached to Neminath. Also, the figurines are crafted with delicate features and rich embellishments, unlike the less detailed ones at Siddhanchal. These differences highlight the regional variations in cave temples across the subcontinent and situate the distinctive characteristics of Gwalior within a larger framework.

Evidential Reasoning

The most startling aspect of the Ambika relief of Urvahi Gate at Gwalior is the apparent contrast between the colossal statues of the Tirthankaras and the miniature figures of the Yaksha and Yakshini. This spacial marginality gives a sense of the relative significance of the two images. Ambika, placed at the feet of the Tirthankara, marks her subordinate position. The tiny sculptures of Ambika here are, however, different from the independent statues that were built elsewhere by the fifteenth century. On the contrary, the most elaborate statue of Ambika that is found in the Urvahi valley belongs to an earlier period, the 7th century. Therefore, it is not the period but the visual representation that is of significance. The objective in the rock-cut architecture here was to focus on the Tirthankaras, and the Ambika figurines are merely an iconographical embellishment. These characteristics of the rock art also shed light on the fact that while elements of maternal love and material embellishments had seeped in, the religion,

especially the Digambar sect, remained primarily centred on asceticism. While this overshadows the Yakshi, it does not negate her importance per se.

An interesting aspect showcasing Ambika's importance here is that she is not just attached to Neminath but has almost a ubiquitous presence under the niches of the images of various Tirthankaras. Thus, the iconography categorically points out that while the spotlight is on the austere Tirthankaras, the Yakshi, a personification of motherly love, must not go unnoticed. Her recurrent presence signifies her as the standard Yakshi in all the reliefs. Another aspect of the relief here is that conventionally the Yakshini is placed on the left, but here she sits on the right. This deviation can be a topic for future research.

Even today, diseased children are bathed in the Trishala Mata Atishaya Kshetra, believing that the water would cure their illness. Protection against childhood diseases is a major aspect of Ambika's mother cult. This lends an iconographical interpretation to the modern relevance of Ambika. In fact, according to the 2011 Census, Gwalior has an infant mortality rate of 52, much worse than the national average of 44. Thereby contributing to making Madhya Pradesh the state with the highest infant mortality rate in the country.

This relevance projects Ambika as the emotional anchor of the community. Asceticism was made appealing by rooting it in the tangible world by way of the Yaksha and Yakshini. The importance of a mother in a religion centred on mendicancy can perhaps be traced to the need for the continuity of the lineage. Ideas of compassion and selfless love would appeal to those who couldn't walk on the harsh path of renunciation. Since the majority of the followers were merchants, this path drew them closer. In that way, the idea of Ambika has helped see the divinity in vatsalya and appreciate that it is the mother who acts as the Tirthankar's guardian. Recent ideas of 'ecofeminism' can also be understood in this context. The mango tree and Ambika's attributes as a nurturer personify harmony with nature. Indeed, the fort would act as a mirror, reflecting these ideas from above and projecting them to the masses.

However, seen from a gendered lens, the concept of Ambika has idealised women and has evolved a prism to judge them through societal norms. While her prestige as a mother is revered, it reinforces the patriarchal mindset where women are just seen in their capacity as submissive, docile, and self-abnegating. The spiritual upliftment of women is possible only when it takes place within the sphere of male authority. Uma Chakravarti (2006) suggests that the idea of motherhood was 'instrumentalised' and attached to her virility and not her free will. Thus, they were "exalted as mothers but denied any status beyond this role" and were "a vessel to

transmit the male seed.” Paradoxically, however, while here her fecundity is venerated, the female reproductive physiology is itself seen as a hindrance in Digambara texts to the woman’s path to liberation. While Svetambaras believe women can attain *nirvana*, the Digambaras hold them incapable of doing so.

It is through the household, and not the ascetic path, that Ambika derives her divine status. Although it gives space to nuns, Jainism sees the domestic sphere as the fundamental abode for women. The idea of a hermit becoming a householder is present in Shaivism, which grew in opposition to Buddhism’s conception of a householder’s initiation into hermitage. While Buddhism stresses the middle path, Jain philosophy draws from the inherent contradiction between the lay devotee and the renunciator and incorporates notions of the mother amid extreme penance. This also brings about an important observation that while primarily being a monastic faith, domestic affairs still hold significance. Contradictorily, today the nuns far outnumber the monks in the Svetambara tradition. However, they are accorded an inferior rank and must show deference even to junior monks.

It is this binary between the householder and the ascetic that Ambika attempts to bridge. She sets an ideal standard for the laywoman to incorporate in herself the glorified conception of motherhood. A point to note here is that the Yakshi is attached to Neminath, who broke off his marriage and took the path to asceticism, leaving his wife in the middle of the wedding. Thus, this contrast in the symbolism of the two highlights the inherent contradiction between the monastic and the domestic affairs. The conception of womanhood is the same; however, the female’s agency is neglected, and her sole role is as a devout wife and a doting mother. Even today, women imagine themselves within this patriarchal set-up and see it as their ultimate fate. The famous Svetambara bhajan ‘Rajul ki Vyatha’ (the condition of Rajul, Neminath’s fiancé), which women like the author’s grandmother sing with gusto in parts of North India, depicts that such notions have become entrenched in the female mind. The bhajan laments Rajul’s condition when she is left by Neminath, but instead of holding him responsible for her misery, it instructs laywomen to follow her example and sacrifice their identities for the ‘greater good’. Ambika too perpetuates this feminine archetype.

Misogynist comments, assassinating a female’s character, and prejudices against her menstrual health are evidenced in numerous Jain texts. This male dichotomy is perhaps the reason for the restricted role of women within the spiritual sphere. The need for modern historiography is therefore to reimagine Ambika not just in terms of her motherly attributes but also as a strong and virtuous woman. These virtues, too, need to be revisited, whether one emphasises docility and submissiveness or independence and grit. In fact, Ambika’s unyielding attitude and fierce appearance can be discerned best

from her tantric iconography, where she is represented with a sword, disc, and sometimes even a bow and arrow. She is seen not just as a caregiver, but also as a protector and a power to ward off evil. The very fact that she sits on a lion, which is her subordinated husband who harassed her, reflects her as a steadfast and resilient woman. Her independent worship, sometimes at par with the Jinas, is itself a testament to her status as a dominant guardian deity. Our deities are often a reflection of the values that we venerate; now is the time to question some of those values.

Conclusion

A woman in her individual capacity, exercising her might – is itself a stupendous change in the rather male centric Jainism. Highlighting the socio-cultural changes that have engulfed the community, it propounds the vision of egalitarianism in the secular and the sacred and ultimately acts as a catalyst for progressive transformation. The problem of holding the narrative of motherhood as the sole criteria for viewing Ambika neglects her multidimensional personality and restricts feminine characteristics in a narrow prism. It confines divinity to certain 'virtues' and generated an arbitrary yardstick to judge other morals. The issue is evident; regardless of her roles, there is a need to inculcate perspectives that view her for her greater individuality.

The study has aimed to reclaim Ambika's identity as a symbol of resistance in amidst the rather male dominated contexts. Her multifaceted role is the embodiment of a woman's spirit of courage and compassion. Independence over subjugation, as depicted in her iconography, highlight both the nuances in Indian devotional tradition and the developments in feminine identity and politics. Placing Ambika in the present context in the Gwalior-Chambal region also sheds light on the condition of women in the region. The sex ratio, according to the 2011 census, is 864 women per 1000 men. This skewed ratio is much below the national average of 943. Moreover, the very recent World Economic Forum's Global Gender Gap Report (2025) places India at the 131st position out of 148 countries. The parameters indicated low female economic participation and an enduring son preference, showcasing that these deep-rooted ideas have persisted over the centuries. The objective of this study has been, therefore, to also highlight the historic marginalisation of women. The need of the hour is to reclaim women's identities not just as mothers, wives, and daughters, but as independent and brave women exercising their agency.

Endnotes:

1. Gwalior is first referred to in Buddhist texts such as those of *Varahamihira* and *Buddhaghosa*.
2. The existence of Ashoka's inscriptions as far as Datia indicates the significance of Gwalior as a crossroads for important trade routes. Al-Baruni (11th century) mentions Gwalior Fort during his visit from Kanauj to Khajuraho. European travellers like Terry and Tavernier mention Gwalior as a *qasba* (a town). Sher Shah Suri also mentions Gwalior. In modern times, British records refer to it as the Scindia state.
3. Panini's *Ashtadhyayi* mentions Chambal as "Charmadyati". Agrawal, V.S , *India as Known to Panini*, Lucknow , 1953, Pg 47
4. *Ibn Battuta*, Bhattacharya , P.K., *Historical Geography of Madhya Pradesh*, Delhi, 1977, Pg 258
5. Chandragupta Maurya received monkhood in Ujjain, from where he proceeded to Shravanabelagola, where he died following the *Sallekhana* tradition.
6. The Sahasrabahu Temple, dedicated to Vishnu (1093 CE), houses an inscription attributed to a Jain scholar.
7. Directory of Gwalior Jains, Archives, Svetambara Jain Sangh Gwalior, 2011-12
8. *Shrimali, Oswal, and Parwar Jains* sponsored many of the cave sculptures. This period, therefore, witnessed the establishment of the Bhattaraka Peeth.
9. Tirthankara Mahavira Smriti Grantha, edited by Ravindra Malav, Gwalior, 1977, p. 324.
10. Each of the 24 Tirthankaras has their own symbol.
11. J.N. Banerjea, *The Development of Hindu Iconography*, 2nd ed. (Calcutta: University of Calcutta, 1956), p. 512; Kalipada Mitra, *Studies in the Origins of Durga: The Goddess and the Sacred Female Principle* (Calcutta: Punthi Pustak, 1971), pp. 83–85; S.K. Jain, "Jaina Iconography in Central India," *Journal of the Oriental Institute*, Vol. 22, 1973, pp. 354–58; T.N. Gopinatha Rao, *Elements of Hindu Iconography*, Vol. II, Part II (Madras: Law Printing House, 1927), pp. 289–91.
12. In comparison to the images, the scale of embellishments and detailing is magnified.

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1. Jain, Pragya. All photographs taken during the field work at the Gwalior Fort. 2025

SILENCED ECHOES OF RESISTANCE: FEMALE EXPRESSION IN INDIAN MUSIC FROM FOLK TO POP

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Abstract

Songs and music have served as alternative archival spaces for gendered and cultural memory, enabling women to express themselves, whether it is for a spiritual union with the divine, voicing their desires, participating in the freedom struggle, or using it as a tool to resist the colonial state and patriarchal norms. One of the most notable features of India's musical diversity is that historically, women have occupied both prominent and informal public spaces in performative vocal cultures. This research paper argues that Indian musical genres have been a site of female expression in cultural memory and gendered history in South Asia. Drawing on feminist and postcolonial theory, this paper explores the female voice across various Indian musical traditions, including Hindustani classical, Rajasthani folk, and contemporary pop music, renegotiating women's power, desire, and agency. Through the analysis of lyrics, historical performance contexts, and secondary scholarship, I explore the metamorphosis of female expression from respectable courtly culture to cultural stigmatisation in the colonial period, with further reclamation of power in the modern music industry. Ultimately, my paper demonstrates that music has acted as an archive for suppressed female expression and reclamation of agency through resistance.

Introduction

The music culture of India is the only major system, outside the West, that has succeeded in maintaining its traditions largely unmarked by the West and a colonial past, and it has also journeyed away from its cultural home to be welcomed elsewhere (Neuman, 1990). India, with its vast linguistic diversity, is home to varied musical traditions performed in different cultural contexts – from ritualistic singing to courtly culture to televised programs. Within these spaces, Indian women express themselves through songs and oral traditions so they can be identified as living subjects with a political voice in the historical archives. This paper challenges the dominant patriarchal narratives by conserving the memory of Indian musical traditions in a gendered counter-archive. While this paper majorly focuses on Rajasthani folk, Hindustani classical, and Contemporary pop, these musical genres are representative of broader Indian musical patterns where women's voices are regionally distinct but collectively memory and agency across time.

Although Indian music is rich in female representation through performance, much of the published scholarly work focuses on the theory of gender, sexuality, or tradition and rarely considers Indian music as a gendered expression within counter-archives. This could be better understood through Taylor's theory.

“Archival” memory exists as documents, maps, literary texts, letters, archaeological remains, bones, videos, films, CDs, all those items supposedly resistant to change...The repertoire, on the other hand, enacts embodied memory... (Taylor, 2003)

Diana Taylor (2003) distinguishes between the archive and repertoire in ‘Acts of Transfer’. Deriving from her work, I argue that the musical genres of India embody the features of repertoire which shift constantly but safeguard the central ‘knowledge’. It records and regenerates the female expression in collective memory, and therefore, serves as a counter-archive when historical records seem to neglect the feminine expression and voice.

Judith Butler's theory of gender performativity assists in understanding how women tackle gendered expectations while navigating their agency. Furthermore, Gayatri C. Spivak's revolutionary article – ‘Can the Subaltern Speak?’ – aids in the comprehension of women performers whose voices have been misinterpreted, erased, or suppressed by dominant institutions. Bell Hooks' conception of marginalized spaces as radical resistance illuminates us towards non-mainstream female artists and their struggle for visibility in a market-oriented and androcentric audience. Ultimately, drawing on Diana Taylor's understanding of the repertoire, this paper situates Indian music in a living and gendered counter-archive.

Methodologically, this paper closely engages with the lyrical content of the songs in historical and performative contexts. The theoretical reading of gender, voice, and archive further extends the research by an analysis of female expression across genres and historical and cultural contexts, including rural Rajasthani folk songs, semi-classical *thumri* music, and contemporary pop music. These voices, though historically unheard or misinterpreted, create an alternative continuing genealogy of female voice and expression that expands recorded history.

This paper begins with an examination of Rajasthani folk songs and the modes of expression for rural women in India. Moving on from folk traditions to the classical traditions, a shift in female perception is evident due to patriarchal and colonial influences. Additionally, the last section argues partial reclamation and resistance of female agency in the contemporary pop tracks. Overall, the analysis of lyrical content in the following paper elaborates on female desire and autonomy from the classical genre to contemporary pop culture, redefining gendered perspectives in Indian music as a counter-archive.

Theoretical Framework

This section of the paper lays a theoretical framework for the assessment of female expression in Indian music as a site of gendered archive. However, before diving into the analysis of the female voice and expression, it's necessary to interrogate what constitutes a woman and her 'voice.' The female voice is not only about the literal sound but also a symbol of visible social presence. Earlier feminist scholars have worked based on the universality of the 'category' of women. Butler questions this theory by pointing out the diversity that exists in women worldwide. By assuming that all women are the same, we are enabling the erasure of the silences that linger in subaltern history. Feminism must recognize that women are not a stable or a universal group; instead, they are, like gender itself, a flexible and contested entity. Gender is socially constructed by various power structures that enforce a set of rules, such as medicine, law, political structures, and culture. Therefore, characterization of women must be diverse, not universally fixed. These women belong to different regions, races, castes, classes and economic backgrounds. Moreover, the social and cultural construction of the female performers must be understood to analyze the female voice and expression effectively. Contemporary feminist debates focus on the multiplicity of 'women' at social, political, and cultural intersections. Similarly, this research paper brings the multiplicity of the character of Indian women to the forefront by incorporating rural women, singers from the contested 'courtesan' category, and pop singers. Historically, when the voices of women have remained suppressed and undocumented in the formal archives, music emerged as an alternative site for gendered expression.

To further situate the paper within the feminist and postcolonial theory, I argue that certain Indian musical genres hold the voices of marginalized women, particularly rural performers and non-mainstream pop singers. Following Spivak, I am using the term ‘subaltern’ to refer to these women because their voices have been socially, politically, and culturally marginalized. However, since gender is not innate, but performed, these female singers are continuously compelled to behave a certain way. For instance, Butler points out that the bodies of female performers have been shaped by social powers and norms. The body is figured as a mere instrument or medium for which a set of cultural meanings are only externally related (Butler, 1990). She suggests that the body is an instrument on which cultural appropriateness and interpretations are implied, as is the case with contemporary pop singers. Similar misinterpretations of the female expression exist in other genres as well. As male chauvinism looms over Hindustani classical in the ‘respectable’ high classical music, women sang semi-classical genres like *thumri* and *dadra*. The women singers who perform in these unconventional genres are overwritten by colonial and patriarchal structures, eventually losing their voice in the process. The lyrical content of these songs is misinterpreted by these structures to portray women as helpless figures without any sense of self-identity. Such gendered bias in artistic spaces reveals the problem of the representation of the subaltern. Spivak, in her insightful essay ‘Can the Subaltern Speak?’, asks whether the subaltern is really being listened to or just spoken for. She clarifies that the subaltern woman is not one without voice; instead, her voice is misinterpreted or erased by colonial and patriarchal structures. This further compels me to counter the crucial assumptions made regarding the voice of the women.

As noted earlier, Indian musical traditions have served as alternative sites for gendered archives. Although music cannot substitute the intricacies of documented histories, it indeed functions as a space where subaltern history can be portrayed through lyrics.

Women have dealt with the limiting and confining spaces available to them, physically or ideologically, by enduring them, claiming them to be meaningful and powerful or by breaking out of and rejecting them. They have also extended their limited spaces in dignified, creative encounters in ways that are qualitatively different from surrender, manipulation or destructive confrontation. One way has been to extend this space without rejecting or evacuating it but by exploring and working within it with unexpected richness (Rao, 1990).

The passage resonates with Spivak’s theory of misrepresentation of the women’s voice. While Spivak focuses on the misinterpretation of the female expression by

authoritative structures, Rao extends the theory by suggesting '*thumri*' as a way to navigate within those structures. Women have been recipients of patriarchal and cultural confinements, including in artistic spaces. For instance, the lyrical content of *thumri* articulates female desire but is constructed such that it caters to the male gaze. However, as Rao (1990) suggests, women create their own space within these confinements, music being the foremost. She emphasizes the *thumri* genre as an alternative space for the feminine voice to be expressed, heard, and understood. Therefore, Indian music enables women to express themselves within restrictive structures and situate music as a counter-archive to the dominant historical archives. Hence, these lenses guide my analysis of lyrical content across all genres.

Rajasthani Folk

Ritualistic folk songs of the women in Rajasthan act as an oral archive in subaltern history. One of the unique features of Rajasthani folk music is that even though it is highly sexually segregated society, the folk songs depict sexually explicit content. Women may not sing with men, but they often sing at them and very often in close proximity to them (Raheja and Gold, 1996). These songs are typically sung during communal festivities like weddings, births, harvests, and communal spaces like the courtyards and domestic spaces. According to Diana Taylor (2003), the repertoire consists of embodied memory, which encompasses within itself 'acts of transfer' or non-reproducible knowledge, like performance, stories, songs, and dance. Rajasthani folk music thus becomes a gendered repertoire which functions within the dominant patriarchal written archives. Under the umbrella of Rajasthani Folk, there are different genres, including *kesya*, *gali*, *maand*, among others. Most of these are ritualistic performances within the female community. Raheja and Gold (1996) in their work, 'Listen to the Heron's Words: Reimagining Gender and Kinship in North India,' suggest an alternative portrayal of South Asian womanhood by scrutinizing these folk traditions. Documentation of these oral performances of subaltern women provide an alternative counter-archive to acknowledge their voice and expression in the dominant patriarchal history.

The following excerpt is from the song '*Kesariya Balam*', which was composed by Allah Jilai Bai. One of the most famous renditions was sung by Maand Gayaki Mangi Bai. *Maand* is a singing style in Rajasthani folk, which is similar to the *thumri* and *ghazal* of Hindustani classical music. This is one of the more sophisticated styles of folk music in India, unlike *kesya* or *gali*, which are sexually explicit:

केसरिया बालम आवोनी,
पधारो म्हारे देश जी |
पियाँ प्यारी रा ढोला, आवोनी,
पधारो म्हारे देश |
गिणताँ गिणताँ घिस गई,
म्हारे आंगलियाँ री रेख ||
केसरिया बालम आवोनी,
पधारो म्हारे देश |

*(Come my saffron lover,
Come to my homeland.
Beloved, sweetheart, my husband, come
Come to my homeland.
The lines of my fingers
Have worn out counting.
Come my saffron lover,
Come to my homeland.)*

This Rajasthani song is sung by or on behalf of women to express their feelings of love, affection, and respect for their beloved husband or lover. ‘*Kesariya*’ means saffron; the word can be interpreted by the qualities of bravery, courage, good health, and wealth. The song expresses the desires of a woman inviting her lover back to her homeland, hinting at the longing felt by her. She is exhausted, and the lines of her fingers have worn out counting the days for the arrival of her beloved. Rajasthani folk songs are sung in groups of women. Therefore, these songs act as a mode of expression for women to vent their emotions. Visibly, the passive emotions of waiting and longing are evident. The passivity of feminine desire and agency is expected by patriarchal cultural norms across genres, including *thumri*. These emotions play the role of gendered labor and emotional exhaustion when seen through Butler’s lens of gender performativity. The female gender is expected to be submissive and display emotions which mirror a lack of agency. Such lyrical content adds to the prescribed gendered norms in a patriarchal society. While *maand* embodies longing, the following are more provocative subgenres.

Wraps and shawls (*odhnis*) play a provocative role in Rajasthani folk songs. Although the purpose of these *odhnis* is to cover the female body, these very garments play a central role in *kesya* to illustrate erotic and infidel emotions. Thus, Raheja and Gold (1996) help us contextualize the paradox of *purdah* in traditional Indian society

with 'shameless' lyrical content. They discuss the importance of the female voice in a regional vernacular and the alternative perspectives it provides about female perception.

Kesya, I brought a skirt from Agra, Lover.

And a wrap from Sanganeer;

Lover, through the wrap, the whole body shows,

Through the veil, the fair cheeks show.

Bite, bite, the whole body,

Don't bite the cheeks or husband will beat you. (Raheja and Gold, 1996)

Kesya is a genre named after the first word of each verse. It represents an 'illicit lover' or a 'red flower'. The above extract depicts the scenery of infidelity. Herein, women are flexible regarding their sexuality and sing openly in choral groups. These women are not shy to talk about flirtations and exciting meetings. Rajasthani women attempt to reclaim the positive energies inherent in female bodies through their loud, chorused singing and graceful dances. Therefore, female desire and expressions of eroticism are displayed remorselessly in Rajasthani folk.

Gali is another type of folk song in rural Rajasthan. It translates to an 'insult' or 'abuse'. *Galis* are usually sexually oriented and almost always directed towards women. Yet, despite being able to sing erotic songs chorally, Rajasthani women are the recipients of patriarchal injustice. These injustices are embedded in the folk songs as well, which reinforces concepts of female submission and inferiority in society. One of the prominent themes in *galis* is infidelity. In contrast to the actual condescending act of adultery, it is forgivable or even encouraged when it is aligned with procreation for the sake of a continual lineage. Often, it is the husband's brothers who engage in this act, thus reducing women's bodies to a mere reproductive tool. Lyrics like – "Yes, useless and empty she remained" (Raheja and Gold, 1996) - imply that being a 'barren' woman is more dishonourable than adultery. Raheja and Gold (1996) indicate that a lover is a boon to the 'barren' woman, resultingly. However, labeling them as such overlooks the complexities of fertility and intimacy in their lives by reducing their identity to a mere reproductive 'tool.' This further shows how old ideas about power in society treat women as only valuable for having babies and take away their control over their own bodies. Therefore, these subtle nuances insinuate towards the rewriting of women's character within patriarchal discourse. Furthermore, it extends Spivak's theory of misrepresentation of women in the archives. Therefore, folk songs function as an alternative method of female expression where formal means of protest are inaccessible within male-authored archives.

Thumri

Among other forms of Hindustani classical music or North Indian classical music, which includes *khayals*, *dhrupads*, *ghazals*, etc., also lies a semi-classical genre called *thumri*. Originally, *thumri* is tied to the old roots of folk music of eastern Uttar Pradesh and Bihar. Eventually, it was associated with the *margi* tradition, which was a classical genre during the nineteenth century. *Thumri* is primarily associated with the courtesan performers – *bais* and *tawaifs* – of the nineteenth century. This musical genre conveys female desire in its lyrical content but is mostly perceived through the patriarchal male gaze. Therefore, *thumri* becomes a site where female expression is misrepresented because of these authoritative structures. Drawing on Judith Butler's gender performativity and Gayatri Spivak's misrepresentation of subalternity, this section analyses how *thumri* has been subjected to the male gaze historically, even with prominent female singers at play.

Initially, *thumri* was performed with a dance performance, but later it was limited to dancing with the voice of the vocalist. The poetry of *thumri* draws upon Vaishnavi and Sufi traditions of passionate bhakti. While these poetic traditions treat human carnal love as a metaphor for metaphysical love, *thumri* uses similar song texts to signify *shringar* (romantic/erotic love, desire) (Rao, 1996).

मिरे दर्द-ए-दिल की कुछ भी जो तुझे खबर नहीं है

ये बता दे मुझ को क्या तू मिरा चारा-गर नहीं है

जो ये इतिहा नहीं है मिरे सब्र की तो क्या है

कि भरा है गम से सीना मगर आँख तर नहीं है

तिरी जुस्तुजू में आखिर मैं कहाँ पहुँच गई हूँ

मुझे कुछ पता नहीं है मुझे कुछ खबर नहीं है

(You have no idea of my hurting heart,

Tell me, are you not my healer?

What is this if not a test for my patience?

My chest is filled with sorrow, but my eyes are not wet.

Where have I reached in your search?

I don't know anything.)

This emotive *thumri* composition was first recorded by Gauhar Jaan, who was also called the 'Queen of the Gramophone.' As understood from the reading of the above stanza, the composition holds space for the expression of feminine desires, but within the restrictive norms of the patriarchal structures. Spivak indicates that the subaltern woman has a voice, but it's being overshadowed by the masculinist perceptions. This *thumri* composition indeed hints at the desires of a lovelorn woman. However, lines like "What is this if not a test for my patience?" imply the lack of agency in the woman. She merely performs the role of a passive lover, always yearning or

waiting. Therefore, *thumri* has features similar to Rajasthani folk in reference to female passivity. Such implications also direct us toward the theory of gender performativity of Judith Butler and can be extended through the following excerpt of Rao's article 'Thumri as Feminine Voice.'

There is little escape from the fact that *thumri* is a form constructed squarely in the male gaze. Women sing, articulating female desire, but as patriarchally constructed. Their audience consists entirely of men, and the singers will later, entertain these men not only musically but sexually as well. (Rao, 1990)

Thumri has been sung by prominent male performers like Ustad Bade Ghulam Ali Khan as well, but it is generally associated with females because of the feminine nature of its lyrical content. In patriarchal discourse, the masculine is at the center, and the feminine is pushed towards the category of 'other.' Such social norms point towards the eventual disgrace of *thumri* to a 'less' respectable form of musical tradition. As colonial roots deepened in the country, Indian musical traditions were labelled as lame and obscene. The colonial masters were unable to understand the rich courtesan culture of India and the idea of patronized performing arts. With the decline of princely states and loss of patronage, the courtesans had to shift to the *kotha* culture. The British mockingly labelled the highly respectable female performers as 'nautch-girls'. Thus began the gradual decline and disrespect of the performative feminine discourse.

Certain *thumris*, which were explicitly erotic, were never taught or sung. These lyrics were sanitized by the patriarchal and colonial structures. As *thumri* was fashioned into devaluation, certain lyrics were deliberately replaced to make it more 'decent.' The word 'अगिन्या' was replaced with 'चुनरी' to denote a scarf instead in the following excerpt.

‘मोरी अगिन्या केसर रंग दरी

मोरी भीजे तन सारी’ (Rao, 1990)

(*My blouse is the color of saffron.*

My whole body is drenched.)

Using Butler's argument, we find that the bodies of female singers are thus culturally appropriated through this sanitization. Furthermore, Rao (1990) compares the female body with *thumri* itself. She states that the female body is incapable of closure. Instead, it is open and vulnerable. Like the female body, *thumri* is also entirely open with small scales and light singing. Within colonialism and patriarchy, such complex emotions relating to female bodies and desires began to be erased from the song texts, thereby eliminating the authenticity of these compositions. Unfortunately, the redemption of *thumri* music was only accepted within the concept of nationalization. Ashok Mitra refers to the nationalization of Akhtari Bai, or the process by which a

young singer named Akhtari Bai Faizabadi was appropriated by the nation and recast as a national treasure called Begum Akhtar (Rao, 1996). Vocalists who could make it with their art and recast as ‘nationalized’ became respected artists, while others were more likely to be identified as *tawaifs*. The transformation from ‘bai’ to ‘begum’ held major significance in terms of honor and respectability. The devaluation of *thumri*, along with the shame that came with expressing the feelings of love, longing, and desire during the twentieth century, minimized the cultural scenario of Hindustani classical music.

Although the women depicted in this music are portrayed as helpless lovelorn ladies, the singers are largely female. These female singers own themselves and have their agency. The *thumri* singers are intellectuals who are distinguished in the fields of music, art, culture, and dance. These independent women play an extremely significant role in promoting the classical culture and carrying forward age-old traditions, while also evolving them to suit a changing society. Begum Akhtar and Gauhar Jaan were a few of the singers who assisted in the popularization of the *thumri* genre. Artists like them have extended their restrictions and created a dignified and creative corner to confront patriarchy. Similarly, reclamation of self and agency of the female singers continues in modern pop culture through non-mainstream performances.

Contemporary Pop Culture

In recent years, contemporary pop culture has become a dynamic music genre for female expression. While in traditional or folk genres, women sing and encircle themselves around love, longing, and domestic life, contemporary pop culture offers greater female agency. Female artists are not restricted to the aforementioned themes anymore and express themselves much more freely and unapologetically in the themes of ambition, self-love, body positivity, and female autonomy. Despite being empowering in certain aspects, this contemporary genre of music is also shaped by patriarchy and the male gaze. As Budd Boetticher has put it:

What counts is what the heroine provokes, or rather what she represents. She is the one, or rather the love or fear she inspires in the hero, or else the concern he feels for her, who makes him act the way he does. In herself the woman has not the slightest importance. (Mulvey, 2006)

This passage was written in the context of sexualized feminine presence in visual culture, such as cinema. Similarly, Mulvey (2006) suggests that “woman as image, and man as bearer of the look” decides the visual contents of the music videos and appearance of the female singers. This section examines how contemporary pop music

culture, while enabling female expression, is also influenced by market and patriarchal forces.

In 'A Labour of Love: The Affective Archives of Popular Music Culture' (Long et al. 2017), the authors talk about two kinds of archives – DIY archives and authorised archives – which in this paper's context may be associated with independent female artists and record labels, respectively. The conventional music industry and popular record labels usually conform to the market forces and the patriarchal male gaze, which promotes the commodification and objectification of the female body. As these institutions are backed by powerful but orthodox structures, they are widely visible in the mainstream media and documented archives. However, female artists like Sona Mahapatra, who do not conform to these biased traditionalist structures, are excluded from the mainstream due to institutional gatekeeping and thus remain marginalized in the music industry. Yet, these margins act as radical spaces of resistance which critique, subvert, or challenge norms. Hooks' (1989) theory of resistant marginal spaces, as she famously quotes, 'these margins have been both sites of repression and sites of resistance...', can be extended to contemporary pop culture in India, where independent artists create space for autonomy and feminine expression.

The following song, *Bekhauff*, was sung by Sona Mahapatra in the television show *Satyameva Jayate* (a social and gender justice Indian TV show). It embodies the reclaiming of radical marginal spaces by the artist and stands against the mainstream entertainment channels.

दीवारें ऊंची हैं गलियां हैं तंग
लम्बी डगर है पर हिम्मत है संग
पाऊं पे छाले हैं सांसें बुलंद
लड़ने चली हूँ आज़ादी कि जंग
बेखौफ़ आज़ाद है जीना मुझे
बेखौफ़ आज़ाद है रहना मुझे

*(The walls are high, the streets are annoyed,
It's a long journey, but my courage is with me.
My feet have blisters, but my breath is strong,
I have come to fight the battle of freedom.
Fearless, I want to live freely,
Fearless, I want to be free.)*

The song mentions the struggles faced by a young woman in the journey of her life. It further elaborates that even with constant obstacles, the girl has the will to move forward. She wants to fight for her freedom, her freedom of expression, her freedom to

live freely, and the freedom to live fearlessly. The lyrical content of the song indicates opposition towards the male gaze. Consider the following excerpt from Mulvey's 'Visual Pleasure and Narrative Film':

The image of woman as (passive) raw material for the (active) gaze of man takes the argument a step further into the structure of representation, adding a further layer demanded by the ideology of the patriarchal order as it is worked out in its favourite cinematic form – illusionistic narrative film. (Mulvey, 2006)

Originally written for cinema, this theory could also be applied to modern musical traditions of television shows and music videos because of its visual nature. The song *Bekhauff* was sung in a TV show which celebrates the voice and justice of the marginalized communities. It creates its own space, separate from the traditionalist mainstream culture, and portrays women not as mere 'sexual objects' but living subjects with a political voice. Yet Bollywood blockbuster songs continue to portray women as objects of desire and lust, in songs such as *fevicol se* and *sheila ki jawani*, indicating that mainstream channels still carry patriarchal scripts and views. According to Brara (2010), Bollywood 'item' songs mentioned as such assist in objectification of the men or women through sensuous singing/dancing in visual narratives.

रीति कि जंजीरें खा गयी जंग
न्याय के मंदिर भी हो गए भंग
जमाना चले ना चले मेरे संग
बोलूंगी हल्ला, आवाज दबंग
बेखौफ़ आज़ाद है जीना मुझे
बेखौफ़ आज़ाद है रहना मुझे

*(The chains of tradition have rust now,
Temples of justice are now banned.
The world may or may not walk with me
I'll speak with a strong voice.
Fearless, I want to live freely,
Fearless, I want to be free.)*

This part illustrates a woman who wants to break free from the shackles of an orthodox society. She has a strong voice and wields it to resist the societal norms and create an identity for herself. The lyric 'आवाज दबंग' translates to 'a bold voice'. In context with Spivak's argument that the subaltern woman's voice is misinterpreted, Sona Mahapatra's song is a declaration to reclaim their voice and resist the silences. This

song also challenges the market frameworks of commodification of the female body. She does not just represent women but is also an active agent in the resistance against the commodification of women under profit-oriented market frameworks. Pop music may not solve the gendered disparities, but artists like Mahapatra continually strive to work against and perform despite them. Through songs like *Bekhauff*, contemporary pop music is building a counter-archival space for greater female autonomy and voice in the industry.

Conclusion

This research paper has examined Indian musical genres across diverse cultural contexts, including folk, *thumri*, and pop music. Although the paper focused on these three regional genres, they do not act as isolated instances instead they reflect the broader musical traditions where women's voices across regions continually negotiated their agency through songs. Indian music has served as an alternative outlet for female voice, desire, and agency in the subaltern history. Drawing on feminist and postcolonial theory, this paper affirms that Indian music has acted as a living and gendered counter-archive, despite institutional, colonial, and patriarchal structures at play. Rajasthani folk music assists in preserving the longing of the subaltern women while *thumri* moulds and adjusts itself within colonial erasure. Lastly, contemporary pop music oscillates between reclamation and objectification of the female bodies while creating DIY counter-archives. By treating music as a gendered counter-archive, this study shows how songs hold women's voices that written records fail to incorporate. Through these voices – rural, semi-classical, and contemporary – Indian women challenge these dominant patriarchal narratives through these musical traditions. Hence, this paper aims to initiate future works on cultural memory and modes of resistance within counter-archives. Future research may also map the evolving female expression by tracing it on digital platforms and support new enlightening debates. Ultimately, this paper seeks to resurface and inscribe the silenced sonic voices of female singers whose echoes have remained buried in history long enough, now aching to be heard, thereby redefining music as a counter-archive.

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